

Christian Economy

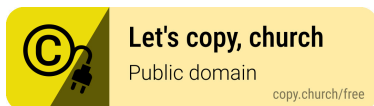
*Or, a short survey of the right manner of erecting
and ordering a family, according to the Scriptures*



William Perkins

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*And if it seem evil unto you to serve the LORD, choose
you this day whom ye will serve... but as for me and my
house, we will serve the LORD.*

— Joshua 24:15

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The Epistle Dedicatory

Right Honorable; Among all the societies & states, whereof the whole world of mankind from the first calling of *Adam* in Paradise, unto this day, hath consisted, the first and most ancient is the family. For if we look into the Scriptures; The writings of *Moses*, which in time go beyond all the Histories and Records of men, do evidently declare, it was the will of God, to sanctify that first conjunction of *Adam* and *Eve*, as the root wherein mans whole posterity was *virtually* contained, and whence in the ages succeeding, both Church and common-weal should spring and grow to their perfection. And all those nations and Countries before the Flood, the Heads whereof lineally descended from the two first houses of *Seth* and *Cain*, had no outward form of civil government, by which they were ruled, nor any visible face of a Church whereto they had relation, but the whole frame of their policy both Civil and Ecclesiastical was confined within the precincts of private families. And from the flood, the house of *Noah* became the common mother, in which the other two states were included, and out of whose bowels they issued afterward in the multiplication of posterity, for number, equal to the stars of the sky, and the sands by the sea shore.

Answerable to the voice of the scripture, hath been the verdict of the Heathen in this point. Some of the¹ learned among them, have called the family,² *the first society in nature, and the ground* of all the rest. Some again have compared it to the Bee-

¹Aristot. Politic. 1.

²Xenoph. in Oeconom.

hive, which we call the Stock, wherein are bred many swarms, which thence do fly abroad into the world, to the raising and maintaining of other states.³ Others do not unfitly resemble the same to a Metropolis, or mother City, which first traineth up her native inhabitants, and then⁴ removeth some of them to other places of abode, where they may be framed as members, to live in obedience to the laws of their Head.

Upon this condition of the family, being the Seminary of all other societies, it followeth, that the holy and righteous government thereof, is a direct mean for the good ordering, both of Church and common-wealth; yea that the laws thereof being rightly informed and religiously observed, are available to prepare and dispose men to the keeping of order in other governments. Hence it is, that the Holy Ghost in the book of the Scriptures, hath in great wisdom commended both rules for direction, and examples for imitation, to husbands and wives, to parents and children, to masters and servants in every point of Christian carriage touching God and man. For this first society, is as it were the School, wherein are taught and learned the principles of authority and subjection. And look as the Superior that faileth in his private charge, will prove uncapable of public employment;⁵ so the Inferior, who is not framed to a course of Economical subjection, will hardly undergo the yoke of civil obedience.

Again, the corruption or declination of this first government, must of necessity give way to the ruining of the rest. For an error in the foundation, puts the body and parts of the whole building in apparent hazard. In the old world,⁶ before the flood,

³Xenoph. *ibid.*

⁴ἀποικίζει. Cic. 3. de Nat. Deor.

⁵1. Tim. 3. 5

⁶Gen. 6. 12.

though *all flesh had corrupted their ways*; yet the first ground of that universal overflow of sin, issued out of the state Economical, and thence was derived into the whole earth. It was the fault of the private government of *Eli* the Priest, that made his sons *Hophni* and *Phinehas*,⁷ of ungracious children, ungodly Churchmen. It was the error of *David* in the administration and guidance of his own house,⁸ which encouraged *Absalom* and *Adoniah* his sons,⁹ upon presumption of their Fathers indulgence,¹⁰ to become ill common-wealths men,¹¹ to aspire, and usurp the kingdom by plots and practises of Rebellion.

To forbear further matter of instance in this kind; by the due consideration of the premises, I hold it a thing both necessary and behoveful for all estates, to be thoroughly informed of the right manner of erecting and ordering the private condition of the family, whereby they may be furnished with fit grounds for the common good in more public and open courses. For which end this present Discourse of Christian Economy, was first contrived by the author, and now thought fit to be set forth, for the instruction and edification of the multitude. Which as it commendeth it self by the shortness and perspicuity, both which being applied to understanding and memory, may give contentment to every well-disposed Reader; so it carrieth a kind of eminency above other Treatises of this nature before published, in sundry regards.

First, whereas Experience teacheth, that the Questions of conscience in matrimonial affairs, are very many in number, and difficult in nature; here we shall find either direct answers to some of them, or at least the grounds of resolution in divers cases, warranted by the word, in such sort, as little or nothing will

⁷1. Sam. 2. 12, 23, 24, 25.

⁸2. Sam. 14 33.

⁹1. King. 5. 6.

¹⁰2. Sam. 15

¹¹1. King. 1.

appear, upon the trial, to be untouched, making for the Readers satisfaction.

Secondly, the main scope of the author in the several branches hereof, is, to make plain this truth in particular, That no family can be interested in the blessing and favour of God, which is not founded in his fear, and ordered according to his revealed will. For though the Heathen in their writings of the like argument,¹² do show, that nature by her dim light may afford some good directions to this purpose, and that men merely natural, have prospered in the practise of Economical virtues; yet the true happiness of houses and inhabitants wholly dependeth upon the special grace of God, and issueth out of his promise; and that is directed only *to them that fear him and walk in his ways*;¹³ it being *godliness alone which hath the promises of this life and the life to come*.¹⁴ Therefore to dream of a blessing in any other state, which is not seasoned with godliness, and ordered by direction of divine law, is but a witless presumption; considering that the family it self from whence they grow, hath no further assurance of blessedness, then it hath right and title in the promise.

Lastly, it containeth here and there, some special grounds of truth, tending to the discovery of divers errors of Popish doctrine in points appertaining to marriage; as namely these;

- I. That this estate is free to all men, even to such as have the gift of continency; and for those who have not the power to abstain, it is expressly enjoined by God as necessary.¹⁵ Which discovereth that error of absolute inhibition thereof to some sorts of men, without the least exception of ability to forbear. And in this case, though the Church of Rome

¹²Aristot. Politic. Xenoph. in Oecon.

¹³Psal. 128. 1

¹⁴1. Tim. 4. 8

¹⁵1. Cor. 7. 1. 2. 8. 9.

prescribeth an help by prayer and endeavour, where the gift is wanting; yet herein, she addeth two more absurdities to the former; imposing a necessity of containing, by her laws, where God hath given liberty, by his word; and causing to flee from that only Remedy which himself hath sanctified, to another, whereunto he neither giveth charge by his will, nor encouragement by promise.

- II. That Marriages consummate without the free and advised consent of parents, either *explicit* in terms, or *implicit* by connivence, are in the court of conscience, mere nullities. A doctrine cleared in this Book, both by Scriptures, and by consent of Antiquity. Wherein is challenged the Jesuits proposition, That the sole consent of the parties is sufficient,¹⁶ *ad Matrimonium firmum ac ratum efficiendum*. As also that decree of the Council of Trent,¹⁷ which professeth a detestation of clandestine contracts, and yet with the same breath pronounceth the curse of Anathema upon them, who affirm that parents may ratify or make void Marriages contracted by their children, without their allowance.
- III. That Matrimony lawfully begun and consummate, is made void only by way of divorce in the case of Adultery. So saith our Saviour;¹⁸ *Whosoever shall put away his wife, (except it be for fornication, &c.)* And this liberty granted by Christ both to dissolve, and to marry again, cannot be restrained or cut off by any humane ordinance. A point directly impugned by two other rules of that Council. One, that the Church of Rome erreth not, when she teacheth (as they profess,¹⁹ *Iuxta Evangelicam & Apostolicam doctrinam*, but in truth

¹⁶Bellarm. de Matrim. Sacram. libr. c. 19.

¹⁷Concil. Trident. Sess. 24. Decreto de clandest. Matrim.

¹⁸Matth. 5. 32.

¹⁹Concil. Trid. Sess. 24. Can. 7.

expressly contradictory thereunto) That the knot of marriage cannot be broken because of adultery, and that neither party may undertake to be married again, during the life of the other, after the dismissal. The other, that the vow of Chastity and entering into holy Orders, is of force to loose the bond of marriage. And in this case, separation is made and allowed *de facto*, by the sole authority of the Pope, notwithstanding the refusal of the settled party to yield consent.

- IV. That the judgement and determination of causes matrimonial, as of Contracts and their impediments, of degrees of kindred, of divorces, &c. Resteth *originally* in the civil Magistrate, in whose power it is, to ordain and establish laws touching them, agreeable to Gods word, and to cause them to be put in execution. For this purpose, in doubtful and difficult cases, the²⁰ ancient Church hath not absolutely rested in her own decrees, but hath made recourse to the seat of Justice, specially under Christian Magistrates, submitting her self to their laws and constitutions in that kind. Whereas the²¹ Church of Rome hath determined, that these causes do simply and only appertain to Ecclesiastical Judges; and therefore hath concluded marriage to be a sacrament; that the definition of cases conjugal, becoming, upon this ground, an action of a spiritual nature, might be transferred from the Civil to their spiritual Courts. The sovereignty whereof; in these affairs, by their own constitutions, is greatly enlarged. For though they admit, that politic Princes have some interest in them; yet they must hold it,²² *with*

²⁰See the Code in sundry places. Lib. 5. tit. 4 de Nuptijs, tit. 5. de incesto, &c.

²¹Concil. Trid. sess. 24. can. 12.

²²Bellarm. de Matrim. Sacram. cap. 32.

subordination to the authority of the Church-Magistrate; and when the Rector of the Province maketh a law hereof, he must do it *approbante Principe Ecclesiastico*, by the allowance of the Pope; otherwise his laws are mere nullities. And among their reasons of policy, this is one of the principal, that they might by this means raise a commodity to the Sea of Rome, by the sale of their dispensations.

Now these points, together with the substance of this small discourse, I willingly commend unto your Lordship, desiring that under the wings of your Honourable protection, it may safely walk abroad in the world, to the view and benefit of others. The true report of your ancient love of the truth, and favourable inclination to the Ministers and dispensers thereof, hath given me encouragement in this action; the rather, for that the argument fitteth in some sort your present estate, whose house God hath adorned with olive plants,²³ a virtuous and hopeful issue, whose young years being seasoned therein, by the sweet savour of their fathers virtues, may yield in time a plentiful increase of honour in this common-wealth; and consequently advance your Name in themselves and their posterity. To this may be added mine own desire to give some testimony of duty to your Lordship, as holding it your due, to be had in Honourable terms with men, whose care hath been to maintain the honour of the Highest by your constant profession and practise of Religion. And thus emboldening my self upon the persuasion of your Lordships favour and acceptance, I humbly take my leave, and commend you to the grace of²⁴ God, who is able to build you up further, and give you an inheritance among them which are sanctified. *Finching-field*, Septemb. 26. 1609.

²³Psal. 128. 3.

²⁴Act. 20. 32

Your Lordships to be commanded in all Christian duty,

THO. Pickering.

1. Of Christian Economy, and of the Family

Christian Economy, is a doctrine of the right ordering of a family.

The only rule of ordering the family, is the written word of God. By it *David* resolved to govern his House, when he saith, *I will walk in the uprightness of my heart in the midst of my house*, Psal. 101. 2. And *Solomon* affirmeth, that *through wisdom an house is builded, and with understanding it is established*, Prov. 24. 3.

A family, is a natural and simple society of certain persons, having mutual relation one to another, under the private government of one. These persons must be at the least three; because two cannot make a society. And above three under the same head, there may be a thousand in one family, as it is in the households of Princes, and men of state in the world.

2. Of the Household Service of God

A family, for the good estate of it self, is bound to the performance of two duties; one to God, the other to it self.

The duty unto God, is the private Worship and Service of God, which must be established and settled in every family. And the reasons hereof are these.

First, because this duty standeth by the express commandment of God, who by his Apostle willeth men *to pray every where, lifting up pure hands, without wrath or doubting*, 1. Tim. 2. 8.

Again, it is confirmed by the custom and practise of holy men in their times; I know (saith the Lord touching Abraham) that he will command his sons and his household after him, that they keep the way of the Lord to do righteousness and judgement, that the Lord may bring upon Abraham, that which he hath spoken to him, Gen. 18. 19. To the same purpose speaketh Joshua; If it seem evil unto you to serve the Lord, choose this day whom ye will serve, whether the gods whom your Fathers served (that were beyond the flood) or the gods of the Amorites in whose land ye dwell: But I and my house will serve the Lord, Josh. 24. 15. And Cornelius is reported to have been a devout man, and one that feared God with all his household, Act. 10. 2.

Thirdly, common reason and equity sheweth it to be a necessary duty; for the happy and prosperous estate of the family, which consisteth in the mutual love and agreement of the Man and wife, in the dutiful obedience of children to their parents,

and in the faithful service of servants to their masters, wholly dependeth upon the grace and blessing of God, and this blessing is annexed to his worship: for 1. Tim. 4. 8. Godliness hath the promises of this life, and the life to come. Psalm. 127. 1. Except the Lord build the house, they labour in vain that build; except the Lord keep the City, the keeper watcheth in vain. Vers. 2. It is in vain for you to rise early, and to lie down late, and eat the bread of sorrow, but he will surely give rest to his beloved. Vers. 3. Behold, children are the inheritance of Jehovah, and the fruit of the womb his reward. Psalm. 128. 1. Blessed is every one that feareth the Lord, and walketh in his ways. Vers. 2. When thou eatest the labours of thy hands thou shalt be blessed, and it shall be well with thee. Vers. 3. Thy wife shall be as the fruitful vine upon the sides of thy house, and thy children like Olive plants round about thy table. Vers. 6. Yea, thou shalt see thy childrens children, and peace upon Israel. 1. Sam. 1. 27. I prayed (saith Hannah) for this child, and the Lord hath given me my desire which I asked of him.

*The household service of God hath two parts; the first is a conference upon the word of God, for the edification of all the members thereof, to eternal life. The second is, Invocation of the name of God, with giving of thanks for his benefits; both these are commended in the Scriptures. Deut. 6. 6. These words which I command thee this day, shall be in thy heart. Vers. 7. And thou shalt whet them upon thy children, & talk of them when thou tariest in thine house, & as thou walkest by the way, and when thou liest down, and when thou risest up. Vers. 20. When thy son shall ask thee in time to come, saying, what mean these testimonies, and ordinances, and laws, which the Lord our God hath commanded you? Vers. 21. Then thou shalt say unto thy son, we were *Pharaohs* bondmen in Egypt, but the Lord brought us out of Egypt with a mighty hand. Vers. 24. Therefore the Lord*

hath commanded us to do all these ordinances, & to fear the Lord our God. *Psal.* 14. 1. The fool hath said in his heart, There is no God. v. 4. They cal not upon God.

The times of this service are these:

The morning, in which the family coming together in one place, is to call upon the name of the Lord, before they begin the works of their callings.

The evening also is another time to be used in prayer, because the family hath seen the blessing of God upon their labours the day before, and now the time or rest draweth on, in which every one is to commend his body and soul into the protection of the Lord; for no man knoweth what shall befall him before he rise again, neither knoweth any whether ever he shall rise again or not, it is therefore a desperate boldness without praying to go to rest.

Besides this, there be other times also wherein to perform this duty, as before and after meals; For meats and drinks are blessed to the receivers, by the word and prayer. 1. Tim. 4. 4. *Whatsoever God hath created is good, neither is any thing to be refused, if it be taken with thanksgiving, for it is sanctified by the word of God and prayer.*

Now these times, the word of God approves. Deut. 6. 6. Thou shalt talk of them, when thou liest down, and when thou risest up. *Psalm.* 55. 18. Evening and morning and at noon, I will pray and make a noise, and he will hear my voice. *Psa.* 127. 1. It is in vain to rise early, and to lie down late, and eat the bread of sorrow, *except the Lord vouchsafe a blessing*, who will surely give rest to his beloved.

To these may sometimes be added the exercise of fasting, which is (as occasion serveth) to be used both publicly & privately, especially when they of the family be thereunto called by some present or imminent calamity. Hest. 4. 16. Go and assemble

all the Jews that are found in Shusan, and fast ye for me, and eat not, nor drink in three days, day nor night: I also and my maids will fast likewise, and so will I go in to the King, which is not according to the law; and if I perish, I perish. *Zachar.* 12. 11. And in that day shall there be a great mourning in Jerusalem, and the land shall bewail, every family apart, the family of the house of *David* apart, and their wives apart, the family of the house of *Nathan* apart, and their wives apart, &c.

Wherefore, those families wherein this service of God is performed, are, as it were, little Churches, yea even a kind of paradise upon earth. And for this purpose *S. Paul* writing to *Philemon*, greeteth the Church that is in his house, *Philem.* 1. 2. And in like manner, he sendeth salutations to the Church of Corinth, from *Aquila* and *Priscilla*, and the Church which was in their house, *1. Cor.* 16. 19. On the otherwise, where this duty of Gods service is not used, but either for the most part, or altogether neglected, a man may term those families, no better then companies of profane and graceless Atheists, who as they deny God in their hearts, so they are known by this note, that *they do not call upon the name of the Lord*, *Psalm.* 14. 4. Yea such families are fitly compared to an heard of swine, which are always feeding upon the mast with greediness, but never look up to the hand that beateth it down, nor to the tree from whence it falleth.

The other duty concerning the house it self, is, That every member in the family, according to their ability, employ themselves in some honest and profitable business, to maintain the temporal estate and life of the whole. *Gen.* 3. 19. *In the sweat of thy face shalt thou eat bread, till thou return to the earth, for out of it wast thou taken; for dust thou art, and to dust shalt thou return.* *1. Cor.* 7. 20. *Let every man abide in the same vocation wherein he was called.* Now if any one in the family starteth

aside out of his calling, and enticeth another to idolatry, he is to be revealed, Deut. 13. 6. And again, their case is very fearful that do nothing in their houses, but go finely and fair daintily from day to day. This is the black mark that the Scripture sets upon the rich glutton, Luk. 16. 19. *There was a certain rich man, which was clothed in purple and fine linen, and fared deliciously every day.*

3. Of Married Folks

A family is distinguished into sundry combinations or couples of persons.

A couple, is that whereby two persons standing in mutual relation to each other, are combined together as it were in one. And of these two, the one is always higher, and beareth rule, the other is lower, and yieldeth subjection.

Couples are of two sorts; principal, or less principal.

The principal, is the combination of married folks; and these are so termed in respect of marriage.

Marriage is the lawful conjunction of the two married persons; that is, of one man, and one woman into one flesh. So was the first institution of marriage, Gen. 2. 21. Which is expounded by our Saviour Christ, Matth. 19. 6. *Therefore they are no more two, but one flesh.* And also by Paul, Ephes. 5. 31. *For this cause shall a man leave father and mother, and shall²⁵ cleave unto his wife, (as two boards are joined together with glue) and they which were two, shall be one flesh.* Wherefore this is an eternal law of marriage, that two, and not three or four, shall be one flesh. And for this cause, the fathers, who had many wives and Concubines, it may be that through custom they sinned of ignorance, yet they are not in any wise to be excused.

Marriage of it self is a thing indifferent, and the kingdom of God stands no more in it, then in meats and drinks; and yet it is a state in it self, far more excellent, then the condition of single life. For first, it was ordained by God in Paradise, above

²⁵προσκολληθήσεται

and before all other states of life, in *Adams* innocency before the fall. Again, it was instituted upon a most serious and solemn consultation among the three persons in the holy Trinity. Genes. 1. 26. *Let us make man in our image, according to our likeness, and let them rule over, &c.* Gen. 2. 18. *Jehovah Elohim said, It is not good that the man should be himself alone, I will make him an help meet for him.* Thirdly, the manner of this conjunction was excellent, for God joined our first parents *Adam* and *Eve* together immediately. Fourthly, God gave a large blessing unto the estate of marriage, saying, *Increase and multiply and fill the earth.* Lastly, marriage was made & appointed by God himself, to be the fountain and seminary of all other sorts & kinds of life, in the common-wealth and in the Church.

Now if mankind had continued in that uprightness and integrity which it had by creation, the state of single life had been of no price and estimation amongst men, neither should it have had any place in the world, without great contempt of Gods ordinance and blessing.

Nevertheless, since the fall, to some men who have the gift of continency, it is in many respects far better then marriage, yet not simply, but only by accident, in regard of sundry calamities which came into the world by sin. For, first it freeth a man from many and great cares of household affairs. Again, it maketh him much more fit & disposed to meditate of heavenly things, without distraction of mind. Besides that, when dangers are either present, or imminent, in matters belonging to this life, the single person is in this case happy, because he and his are more secure and safe, then others be who are in married state. 1. Cor. 7. 8. *Therefore I say to the unmarried and widows, It is good for them if they abide even as I do.* vers. 26. *I suppose then this to be good for the present necessity, I mean, that it is good for a man so to be,* vers. 28. *But if thou takest a wife thou sinnest not, and*

if a virgin marry she sinneth not; nevertheless such shall have trouble in the flesh, vers. 32. And I would have you without care.

The end of marriage is fourfold.

The first is, procreation of children, for the propagation and continuance of the seed and posterity of man upon the earth, Gen. 1. 28. *Bring forth fruit multiply, fill the earth, and subdue it, Genes. 9. 1. 1. Tim. 5. 14.*

The second is the procreation of an holy seed, whereby the Church of God may be kept holy and chaste, and there may always be a holy company of men, that may worship and serve God in the Church from age to age, Malach. 2. 15. *And did not he make one? Yet had he abundance of spirit; and wherefore one? Because he sought a godly seed.*

The third is, that after the fall of mankind, it might be a sovereign means to avoid fornication, and consequently to subdue and slake the burning lusts of the flesh, 1. Cor. 7. 2. *Nevertheless for the avoiding of fornication, let every man have his wife, and every woman have her husband. vers. 9. But if they cannot abstain, let them marry; for it is better to marry, then to burn.* And for this cause, some Schoolmen do err, who hold that the secret coming together of man and wife, cannot be without sin, unless it be done for procreation of children. *Lombard* the master of the Sentences saith the contrary, namely, *that marriage before the fall was only a duty, but now since the fall it is also remedy.*

The fourth end is, that the parties married may thereby perform the duties of their callings, in better and more comfortable manner. Prov. 31. 11. The heart of her husband trusteth her, and he shall have no need of spoil. vers. 13. She seeketh wool, and flax, and laboureth cheerfully with her hands.

Marriage is free to all orders, and sorts of men without exception, even to those that have the gift of continency; but for them which cannot abstain, it is, by the express commandment of God,

necessary. Hebr. 13. 4. *marriage is honorable amongst all men, and the bed undefiled.* 1 Cor. 7. 9. *But if they cannot abstain, let them marry.*

By which it appeareth to be a clear case, that the commandment of the Pope of Rome, whereby he forbiddeth marriage of certain persons, as namely, of Clergy men, is merely diabolical; for so writeth the Apostle, 1. Tim. 4. 1. *The spirit speaketh evidently, that in the latter times some shall depart from the faith, and shall give heed unto spirits of error, and doctrines of devils, vers. 3. forbidding to marry.*

But against this doctrine sundry things are alleged.

Object. 1. The Apostle commandeth the married among the Corinthians, *to abstain with consent for a time, that they might give themselves to fasting and prayer,* 1. Cor. 7. 5. I answer, that *Paul* speaks not in that place of daily and common service of God in prayer, but of the solemn and extraordinary exercise thereof, which was joined with fasting and abstinence, in common dangers and calamities.

Object. 2. 1. Cor. 7. 32. *He that is unmarried careth for the things of the Lord, how he may please the Lord; but the married person careth for the things of the world.* Answ. The place is not generally to be understood of all, but indefinitely of those married persons that are carnal and fleshly. And he that is married, is to be so careful for the things of the world, as that he ought, and may have also a special regard of those things that concern God and his kingdom.

Object. 3. 1. Tim. 5. 11. *The younger widows (saith the Apostle) will marry, having damnation because they have broken the first faith.* Answ. By *the first faith*, *Paul* understandeth that promise and vow which they made unto Christ, when they were baptised; and they are there said *to begin to wax wanton against Christ*, by denying or renouncing that faith, and not otherwise.

Object. 4. He that doth earnestly and from his heart, crave the gift of continency, God will give it him, and therefore he need not marry.

Answ. The gifts of God are of two sorts, some are general, some are proper general gifts are such as God giveth generally to all, and these may be obtained, if they be asked according to Gods word, lawfully, Jam. 1. 5. *If any of you lack wisdom, let him ask it of God, who giveth to all men liberally, and reproacheth no man, and it shall be given him.* vers. 6. *But let him ask in faith, and waver not.* proper gifts, are those which are given only to some certain men; of which sort is the gift of continency and such like, which though they be often and earnestly asked, yet they are seldom or never granted unto some men; as appeareth in Pauls example, who being *buffeted by Satan*, saith of himself, *For this thing I besought the Lord thrice, that it might depart from me; but he said unto me, My grace is sufficient for thee,* 2. Cor. 12. 8. 9.

4. Of the Contract

Marriage hath two distinct parts, the first is the beginning; the second, the accomplishment or consummation thereof.

The Beginning, is the contract or Espousals; the End or accomplishment, is the solemn Manifestation of the contract, by that which properly we call marriage. Deut. 20. 7. *What man is there that hath betrothed a wife, and hath not taken her? Let him go and return again unto his house, lest he die in battle, and another man take her.* Matth. 1. 18. *When his mother Mary was betrothed to Joseph, before they came together, She was found with child of the Holy Ghost.*

Between the contract and marriage, there ought to be some certain space or distance of time. The reasons whereof may be these:

First, a business of so great importance as this is, would not be rashly or unadvisedly attempted, but should rather be done by degrees in process of time, according to that saying, not so ancient as true.²⁶ *Actions of weight, before resolution, require mature deliberation,* Secondly, That during such a space, inquiry may be made, whether there be any just cause, which may hinder the consummation of marriage: considering that before the parties come and converse together, what is amiss may be remedied and amended, which to do afterward will be too late. Thirdly, In these cases, persons espoused must have regard of honesty, as well as of necessity; not presently upon the contract,

²⁶Diu deliberandum quod semel statuendum.

seeking to satisfy their own fleshly desires, after the manner of brut beasts, but proceeding therein upon mature deliberation.

The contract is a mention or mutual promise of future marriage, before fit and competent Judges and Witnesses.

The best manner of giving this promise, is, to make it²⁷ *in words touching the present time*, and simply without any exception or condition expressed or conceived. For by this means it comes to pass, that the bond is made the surer, and the ground or foundation of future marriage the better laid. And hence alone it is, that the persons betrothed in Scripture are termed man and wife. *Jacob* speaking of *Rachel*, who was only betrothed unto him, saith to *Laban*, *Give me my wife*, Genes. 29. 21. Deut. 22. 23. *If a maid be betrothed to a husband, and a man find her in the town, and lie with her, then shall ye bring them both out unto the gates of the city, and shall stone them with stones to death, the maid, because she cried not being in the city, and the man, because he hath humbled his neighbours wife.* Matth. 1. 20. *Joseph fear not to take Mary thy wife.*

Now if the promise be uttered in words,²⁸ *for time to come*, it doth not precisely bind the parties to performance. For example, if one of them saith to the other; *N. I will take thee*, &c. And not, *N. I do take thee*, &c. By this form of speech the match is *not made, but only promised* to be made afterward. But if on the other side it be said, *N. I do take thee*, and not, *I will take thee*; by these terms, the marriage at that very instant is begun,²⁹ not in regard of fact, yet in regard of right and interest, which the parties have each in another in deed and in truth. And this is the common opinion of the learned. Yet notwithstanding, if the parties contracting shall say each to other, *I will take thee to*,

²⁷In verbis de praesenti.

²⁸In futurum.

²⁹Non de facto, de iure.

&c. With intention to bind themselves at the present; the bond is in conscience precisely made before God, and so the contract is indeed made³⁰ *for the present* time before God. True it is, that he which standeth to his promise made, as much as in him lieth, doth well: yet if the promise hath or conceiveth some just cause, why he should afterward change his purpose, the contract expressed in terms for time to come, though it were formerly made, & confirmed by oath, must notwithstanding give place to the contract made for time present.

Those espousals, which are made upon condition, which is honest, possible, and belonging to marriage, do cease or depend: so far forth as the condition annexed ceaseth or dependeth. For example; If the one party promiseth to marry the other upon condition, that his or her kinsman will yield consent to the match; or upon condition of a dowry that she shall bring unto him, suitable to her education, and the family whereof she commeth: these conditions being kept or not kept, the promise doth likewise stand, or not stand.

But those conditions which are necessarily understood, or which may certainly be kept and come to pass, do neither hinder nor suspend marriage. As this: *I promise thee marriage, if I live; or, I promise to marry thee, if the Sun rise to morrow.*

Again, conditions that are either impossible or dishonest, are not to be accounted as promises annexed³¹ in way of marriage. Of which sort are these, *I will be thy wife, if thou wilt take unto thee wings and fly*, or, *If thou wilt bring an untimely birth.*

Furthermore, if the parties betrothed, do lie together before the condition (though honest & appertaining to marriage) be performed; then the contract for time to come is, without further controversy, sure and certain. For where there hath been a carnal

³⁰De praesenti.

³¹Jn saurem Matrimony.

use of each others body, it is always presupposed, that a mutual consent, as touching marriage, hath gone before.

5. Of the Choice of Persons Fit for Marriage

For the making of a contract, two things are requisite: first the choice, & then the consent of the parties.

Choice is an enquiry after persons marriageable.

Persons marriageable, are such as be fit and able for the married state.

This fitness or ability is known and discerned by certain signs; which are either essential to the contract, or accidental.

An essential sign is that, without which the contract in hand becomes a mere nullity. And of this sort there are principally five.

The first is the distinction of the sex, which is either male, or female. The male is man of a superior sex, fit for procreation. The female is woman of an inferior sex, fit to conceive and bear children. 1. Cor. 11. 7. *The man ought not to cover his head; for as much as he is the image and glory of God; but the woman is the glory of the man.* 1. Tim. 2. 12. *I permit not the woman to teach, neither to usurp authority over the man, but to be in silence.* By this distinction is condemned, that unnatural and monstrous sin of uncleanness between parties of the same sex,³² commonly termed Sodomy; as also the confusion of the³³ kinds of creatures, when one kind commits filthiness and abomination with another.³⁴

³²Rom. 1. 26

³³Species.

³⁴Leuit. 18 22. 23.

The second sign, is, the just & lawful distance of blood.

Distance of blood is then just and lawful, when neither of the persons that are to be married, do come near to the kindred of their flesh, or to the flesh of their flesh, for so the Scripture speaketh, Levit 18. 6. *No man shall come near to any of the flesh of his flesh: or to the*³⁵ *kindred of his flesh.* Where it is to be observed, that by *a mans flesh* is meant that substance which is of himself, or whereof himself consisteth. And by the *flesh of his flesh*, that which next and immediately issueth out of that flesh whereof he consisteth. Whereupon it followeth, that the touching or coming near of flesh to flesh, is not *spoken of strangers*, but *of those* only that are of kindred.

Kindred is of two sorts, consanguinity, or affinity.

Kindred in consanguinity, are those which issue from out, & the same common blood or stock. And there be certain degrees, whereby kinsmen of this sort are distinguished one from another.

A degree is a generation or descent between two persons that are of the same blood. For one person cannot make a degree, unless he be considered relatively in regard of generation.

Now many degrees continued or derived from one and the same head, do make a line; And a line is twofold, the Right line, or the Overthwart, commonly termed collateral.

In the Right line, look how many persons there are, so many degrees there be, that only excepted, which upon occasion offered, is in question, and from which we begin the account.

- Abraham.
- Isaac.
- Jacob.
- Joseph.

Here *Joseph* is distant three degrees from *Abraham*, *Jacob* two, *Isaac* one, or the first.

³⁵Ebr. יֶשֶׁר בְּשָׂרוֹ

The Right line is either ascending or descending.

The right line ascending, is the race of all the ancestors; and it hath sundry degrees. Of the first whereof is, the father and the mother; of the second, the grand-father both by the father and mothers side, that is, the father of my father, and the father of my mother; and the grand-mother, that is to say, my fathers and my mothers mother. Of the third, is, the great grand-father, or the father of my grand-father; and the great grand-mother, or the mother of my grand-father. Of the fourth, is the great grand-fathers father, and the great grand-fathers, or grand-mothers mother. Of the fifth, is the great grand-fathers grand-father, & the great grand-fathers, or great grand-mothers grand-mother. Of the sixth, is the great great grand-fathers grand-father; & the great great grand-fathers, or great great grand-mothers grand-mother.

The right line descending, is the race of a mans own posterity. And that also hath sundry degrees. The first whereof is, the son and the daughter; the second, the nephew, and the niece; the third, the nephews son, and the nieces daughter. The fourth is the nephews nephew, or the son in the fourth degree of lineal descent, & the nieces niece, or the daughter in the same degree of descent. The fifth is he and she that are three lineal descents from the childs child. And so are the rest in their order, by what names soever they be called and known.

Now in this right line, whether ascending or descending, the person, of whom the case or question is moved, commeth near to the kindred of his flesh. And therefore marriages in this line are prohibited infinitely, without any limitation; so as if *Adam* himself were now alive, he could not marry by the law of God, because he should come near to the kindred of his own flesh, as *Moses* speaketh. The reason hereof is, because in the right line, superiors and inferiors are to each other as parents and children; and the kindred between parents & children, being the first and

nearest of all other, their conjunction in marriage must needs be most unclean, and repugnant unto nature.

The collateral or crooked line, is that, which walketh by the sides of the right line, whether ascending or descending, in the row of the kindred. And it is either unequal or equal.

The unequal is that, whereby the person in question and his kinsman, are unequally distant from the common stock, or head of the kindred.

And in this line, look how many degrees the kinsman that is furthest off from the common stock, is distant from the same, so many is he and his kinsman in question distant one from the other.

For example,

- Terah.
 - Abraham—
 - Nahor
 - Bethuel
 - Laban.

Here *Laban* being removed furthest off, to wit, three degrees from the common stock *Terah*; is likewise three degrees distant from *Abraham*, his great uncle, and *Abraham* so many from him.

Furthermore, kinsmen in this line are of two sorts; some are Superiors to the person in question, some are Inferiors to him.

Superiors are such, as are a kin to his father, and mother, *of some side*; and that either nearer, or further off.

Those that are *of near* kin to them, be these.

- I. The uncle of the fathers side, or the fathers brother; the aunt of the fathers side, or fathers sister. The uncle of the mothers side, or the mothers brother; the aunt of the mothers side, or the mothers sister.

- II. The great uncle, or grand-fathers brother; the great aunt, or grand-fathers sister. The great uncle, or grand-mothers brother, and the great aunt, or grand-mothers sister.
- III. The great uncle by the fathers side, or great grand-fathers brother; and the great aunt by the fathers side, or great grand-fathers sister. The great uncle by the mothers side, or the great grand-mothers brother; and the great aunt by the mothers side, or the great grand-mothers sister.
- IV. The great grand-uncle by the fathers side, or great grand-fathers fathers brother: and the great grand-aunt by the same side, or the great grand-fathers fathers sister. The great grand-uncle by the mothers side, or great grand-mothers mothers brother: and the great grand-aunt by the same side, or the great grand-mothers mothers sister.

Now these in regard of their inferiors, are in stead of parents, and therefore do come near to the kindred of their flesh.

Those superiors which are of kindred to parents on the one side, *a far off*, are these.

- I. The son and daughter of the great uncle or aunt by the fathers side; or of the great uncle or aunt by the mothers side.
- II. The nephew and niece of the great uncle or aunt by the fathers side, or of the great uncle or aunt by the mothers side,³⁶ *near to the cousin germane*.

And these as they stand in comparison with their inferiors, do not come near to the kindred of their flesh.

The equal collateral line, is that, whereby kinsmen are equally distant from their head.

Kinsmen of this line, are,

- I. Whole brothers, that is, brothers by the same father and mother, or half brothers, that is, brethren by the same father, but not by the same mother. Again whole sisters by the same

³⁶Sobriuo propior.

father or mother, or half sisters by one of them and not by both.

- II. The brothers children or cousin germans; that is, the uncles sons or daughters, or the aunts sons or daughters. The sisters children, or cousin germans; that is, the aunts sons or daughters, which are the children of two sisters.
- III. The cousin german, the son of the great uncle by the fathers or mothers side, and the cousin german the son of the great aunt, by the fathers or mothers side. The cousin-german the daughter of the great uncle, by the fathers or mothers side, and the cousin german, the daughter of the great aunt by the same sides.

In this line, look how many degrees the party in question is removed from the common stock, by so many twice-told, is he removed from his kinsman in question. Put the case between *Bethuel* and *Isaac*, as in this example.

- Terah
 - Abraham—
 - Isaac.
 - Nahor
 - Bethuel.

Here *Bethuel* being two degrees removed from *Terah*, is four degrees distant from *Isaac*.

Now he that is in the second degree of this line, comes near to the kindred of his flesh; and for that cause the marriages of brethren, and sisters are unlawful, and forbidden.

But against this, sundry things are alleged.

Object. 1. The sons of *Adam*, who were the first brethren in the world, married their sisters; marriages therefore in this degree may seem to be lawful. *Answ.* The case of those persons in those times, was a case of necessity, which could not be avoided, and thereupon was warranted by divine dispensation. For God had

given them his own express commandment in this behalf; *Bear fruits and multiply*, Gen. 1. 28. Besides that, there were then no other women in the world, by whom they might have issue and posterity, but only by their sisters. Whereupon it is manifest, that Gods will was, to permit them to take even their sisters to their wives. But now out of this special dispensation from God, such matching is utterly unlawful, being an apparent breach of another express commandment given afterward by God himself, Levit. 18. 9. 11. To this purpose saith *Augustine* in way of answer to the example propounded.³⁷ *The practise of those first times,*³⁸ *then backed by urgent necessity; the more ancient it was, the more damnable it proved afterward, when it was restrained by Gods commandment.*

Object. 2. Sarah was Abrahams sister, and yet Abraham took her to wife. Gen. 20. 12. Yet in very deed she is my sister, for she is the daughter of my father, but not the daughter of my mother, and she is my wife. Gen. 11. 29. Abraham and Nahor took them wives, and the name of Abrahams wife was Sarah. Answ. Touching this instance, there are sundry opinions. The Jews do grant thus much, that she was called by a name common to all kinsfolk of that sex, to wit, *a Sister*; yet indeed she was *Abrahams* niece, the sister of *Lot*, and the daughter of *Haran*, *Abrahams* brother, which *Moses* elsewhere calleth *Iischa*, Genes. 11. 29. Others think, that she was daughter in law to *Terah*, *Abrahams* father; because *Abraham* himself saith, *She is the daughter of my father, not of my mother*. Others are of opinion, that she was *Harans* daughter in law, and after his death was translated into the family of *Terah*, her grand-father; who was also in stead of her father being dead, and thence she was termed his daughter. Now howsoever in this variety of judgements, it is hard to find

³⁷De ciuit.

³⁸Dei. lib. 15. ca. 16.

certainty of truth, yet this is out of doubt, that God in those days tolerated many things, which notwithstanding he did not altogether approve.

Object. 3. 2. *Sam. 13. 13. Tamar says to her brother Amnon; Speak I pray thee to the King, and he will not deny me unto thee.*
Ans. The speech of *Tamar* is not simply to be taken, as if she desired that which she said, or as if it were lawful to be done, which she wished him to do; but only that she sought to put him off, by giving him this counsel, in respect of her own deliverance from that present danger; wherein she was. Or at least it may be said, that she erroneously supposed it was lawful for the King to grant such a suit, if it had been made unto him by her brother *Amnon*. Whether way soever this speech be taken, there can no such thing be gathered thence, as is pretended.

Now out of the second degree of the equal collateral line, it should seem that those who are joined one to another in marriage, do not touch the kindred of their flesh; and therefore the law of God forbiddeth not consobrinnes or cousin-germans, that is, brothers and sisters children to marry.

Yea if examples be of force for this purpose, the Scripture approves such marriages. For thus it is written, that Jacob married Rachel the daughter of Laban, his mothers brother, Genes. 28. 2. Again, that Mahlah, Tirzah, and Hoglah, Milcah and Noah the daughters of Zelophehad, were married unto their fathers brothers sons, Numb. 36. 11. And Othniel the son of Kenaz, the cousin of Caleb, took Kiriath-sepher; and he gave him Achsah his daughter to wife, Jos. 15. 17.

Howbeit in this case, the rule of the Apostle is to be followed; That nothing be done, even in things that are otherwise lawful, whereby a mans brother may stumble, or be offended, or made weak, Rom. 14. 21. Wherefore it is convenient, that such marriages should not be, because sometimes they may give offence

in regard of the law of the Magistrate; and because they come somewhat near to the bonds and terms of blood and stock, which God hath set down in his word. Augustine in his 15. Book, De ciuitate Dei, chap. 16. Saith to this purpose, Experti autem sumus, &c. That is, We have found by experience, that in regard of that nearness of blood, which cousin-germans have unto the degrees of brothers and sisters, how rarely custom hath admitted those marriages, which were warrantable by laws, because the law of God hath not forbidden them, nor as yet the law of man. Nevertheless the practise lawful in it self, was forborne the rather, because it came near to that which was unlawful, and therefore marriage with the cousin-german, seemed in a manner to be marriage with a mans own brother or sister, &c. Howbeit, there is no question, but in these times it hath been well provided by laws, that such marriages should not be undertaken. For as the multiplication of alliance is hindered thereby, so this inconvenience also groweth from them, that friendship and love which is procured by affinity, between men that are strangers; cannot be enlarged and increased, where men go not out of the limits, and terms of their own blood; Yea, there is naturally in man a commendable measure of shamefastness, whereby upon consideration of nearness in blood, he acknowledgeth a due debt of modesty and honor to his next kindred, and consequently restraineth himself in regard of them from he occasions and actions of concupiscence, whereunto he is inclinable in respect of others. And hence it is, that generally the modesty that ought to be in those which intend marriage, avoideth as much as may be, these and such like conjunctions. The same is the judgement of Ambrose in one of his Epistles to his friend Paternus,³⁹ wherein he dissuadeth him from marrying his son with his cousin-german, upon the grounds before alleged by Augustine adding

³⁹Epistol. li. 8. epist. 66.

*this withal, that though it were in it self lawful, being no where forbidden by God, yet in sundry respects being inexpedient, it ought not to be done, according to the saying of the Apostle, All things are lawful for me,*⁴⁰ *but all things are not expedient.*

But it is avouched to the contrary, that God by express law forbiddeth marriage with the aunt, the fathers sister Levit. 18. 12. And with the mothers sister, vers. 13. And with the fathers brother wife, which is also the aunt, vers. 14. Therefore by the law of proportion, it forbiddeth matching with the children of these persons. For in nature it is a ruled case: If a man may not marry the mother, much less may he marry the daughter.

Ans. The argument is faulty, and concludes nothing to the purpose. For there is not the same reason of both. In the right line of consanguinity, those which are sisters to father and mother, stand in the place and stead of parents; and their nephews and nieces are to them as children, therefore marriages among them can stand by no law, either of God, of nature, or by the positive laws of nations. It is not so with cousin Germans. For having no such relation, there is not in their marriages, by the law of *Moses*, any discovery of shame, or breach of civil honesty. The blessing of God upon some of them mentioned in Scripture, as upon *Jacob* and *Rachel*, and such like, do evidently show that they were lawful in themselves, and pleasing unto him. And thus much touching kindred by blood or consanguinity.

Kindred in affinity, is that, whereby the terms of two kindreds, are brought into the society of one and the same family; or whereby persons that are not of blood, are by marriage allied each to other. Hence it is termed affinity, because it maketh an unity of terms in kindred, which before were distant.

Affinity or alliance groweth by mixtion or participation of blood, in the coupling of man and wife together in lawful

⁴⁰1. Cor. 6.

marriage. For a bare and simple contract, maketh not alliance between party and party properly, but marriage after the contract finished and consummate.

Again, the same alliance ceaseth and determineth upon the death of either party espoused or married; yet so as the prohibition of conjunction remains, and stands in force, for the preservation of public honesty.

Now there is a kind of resemblance and proportion between kindred of blood, and kindred by marriage, not only in regard of degrees and line, but also in respect of the prohibition of degrees.

Those that are of alliance, are commonly reduced to these heads.

- I. The father in law, or the husbands or wives father. The mother in law, or the husbands or wives mother.
- II. The mothers husband, or step father to them that come by another man. The fathers wife, or step-mother to those that come by another woman.
- III. The wives fathers father, or grand-father, and the wives mothers mother, or grand-mother; or the grand-father and grand-mother of the wife.
- IV. The son in law, or daughters husband, and the daughter in law, or sons wife.
- V. The nieces husband, & the nephews wife.
- VI. The step-son, or son in law, that is, the son of a man by another wife, or of a woman by another husband. The step-daughter, or daughter in law, that is, the daughter of a man by another wife, or of a woman by another husband.
- VII. The step-sons son, or his son who comes of a man by another woman, or of a woman by another man. And the step-daughters daughter, or her daughter who comes of a man by another woman, or of the woman by another husband

VIII. The husbands or wives brother, & the husbands sister, or brothers wife.

IX. The sisters husband, and the brothers wife.

Concerning affinity, I propound these rules.

I. Look in what degree a man is of consanguinity to ones wife, in the same degree of affinity he is to the wives husband. And contrariwise for example.

- Isaac
 - Esau.
 - Jacob.
 - Joseph—
 - Joseph
- Samuel
 - Aaron.
 - Eli.
 - Maria.
 - Levi.

Here, if *Mary Josephs* wife, be distant from *Esau Josephs* uncle by the fathers side, two degrees, then also is *Joseph* himself distant from *Aaron* the brother of *Eli* his father in law, two degrees. If *Mary* the wife, be distant from her own father *Eli* one degree, and from her grand-father *Samuel* two; then also is her husband distant from *Eli* his father in law, one degree, and from *Samuel* his wives grand-father, two. Another example.

- Herod.
 - Herod.
 - Philip, whose wife is Herodias.

Here *Herod* being in the first degree of consanguinity with his brother *Philip*; *Herodias* his brothers wife is in the first degree of affinity to him.

II. *rule.* Cousins by marriage within the degrees, both of the right and collateral line, do come near to the kindred of their flesh, in the same manner that cousins by blood do, in the same lines; and the like degrees in both are forbidden. Therefore in the right line of affinity, it is as well unlawful for the father in law to marry the daughter in law, or the son in law to marry the mother in law; as it is for the father to marry the daughter, or the son the mother. Again, in the collateral, it is as unlawful for the uncle by the mothers side, to marry the wife of his sisters son, and so in other degrees, as it is for him to match in the same degrees of consanguinity. The reason is, because in these lines, as well as in those of consanguinity, superiors and inferiors, are each to other as parents and children.

From hence amongst other things, it may be gathered, that it is in no sort lawful for a man, when his wife is dead, to marry her sister, Levit. 18. 16. Thou shalt not discover the shame of thy brothers wife; for it is thy brothers shame. And Levit. 20. 21. The man that taketh his brothers wife, commiteth filthiness, because he hath uncovered his brothers shame.

Against this doctrine it is objected. First, that God commandeth not to take a wife with her sister, during her life, Levit. 18. 18. In which place, he doth not simply forbid a man to marry two sisters one after another, but to marry them both together, and therefore after the wife is dead, a man may marry her sister.

Ans. The place is a flat prohibition of the sin of *Polygamy*. For to take a wife to her sister in the Hebrew phrase, is nothing else but to take two wives one to another. The like form of speech is used otherwhere by *Moses*, as Exo. 26. 3.

Five curtains shall be coupled together, [the woman to her sister] that is, one to another; and the other five curtains shall be coupled [the woman to her sister] that is, the one to the other. Ezech. 1. 9. The four beasts were joined with their wings, [the

woman to her sister] that is, the one to the other. Again, *Moses* himself there allegeth two reasons against *Polygamy*: the one is, because the man is to love, cherish and comfort this wife; whereas, if he should take unto him another besides her, he should greatly vex his first lawful wife. The other, because by that means he should uncover the shame of his wife; that is, he should play a very dishonest part with her, to whom he was before lawfully married.

Object. 2 The Lord commanded by a special law, that the brother, in case his brother died without issue, should take his wife, and raise up seed unto him, Deut. 25. 5.

Answ. The words of *Moses* are a special exception of a general law propounded in Levit. 18. 16. *Thou shalt not discover the shame of thy brothers wife; for it is thy brothers shame.* And they are peculiarly directed to the Israelites, upon special cause; that, when the elder brother died without seed the name of the first borne might not be extinct, but the family might be preserved in that name, by raising up of seed unto him, which being a privilege proper to the Israelites, upon that special consideration, it must not be enlarged to any other sort of men whatsoever. Neither is the text to be understood of cousins removed only, as some think, but also of the next of the kindred by blood; as appeareth plainly by the history of *Ruth*, chap. I. Vers. II. In these words of *Naomi* to her daughters in law, *Turn again, my daughters; for what cause will you go with me? Are there any moe sons in my womb, that they may be your husbands? Turn again, my daughters, go your way, for I am too old to have a husband, &c.*

III. *rule.* The wives kinsman by blood, is of affinity to her husband only; but unto his kindred by blood, the said kinsman hath no affinity at all. So on the contrary it is true, that though the husbands kinsman by blood, be allied to his wife, yet he hath no

alliance to those that are kinsmen of blood unto her. The reason is, because between the kindred of blood on the mans side, and the kindred of blood on the womans side, there is no affinity. For the prohibition of the degrees of affinity, hath force in those only which are the cause thereof, and goeth no further. Now the cause being only in the married persons themselves, the effect may not in reason be enlarged, to them that are of the same blood with either of them.

From this rule it followeth, that the kindred of both married persons by blood, may lawfully match together. The son in law, may match with the daughter of his mother in law. The father and the son by another wife, may marry the mother and the daughter. Two brothers may lawfully match with two sisters.

IV. *rule.* Kindred of affinity to the wife,⁴¹ are also kindred of affinity to her husband; but how? Not properly, but only after a sort, and as it were, of affinity. So on the contrary. Kindred of alliance to the husband, are, as it were, of alliance to his wife. For example. The wife of my father in law, which is not my wives own mother, but her step-mother, is, as it were, my mother in law, for she is (as it were) of affinity to me, because she is indeed of affinity to my wife.

Those which are of affinity only after a sort, cannot conveniently match one with another. And therefore the son in law may not marry with his wives step-mother; because being of affinity to his wife, she is in stead of a mother in law to him. Neither may the daughter in law match with her husbands step-father, because he is (as it were) a step-father to her. Again, my sisters husband may not marry my brothers wife; for they are after a sort, brother and sister each to other. The reason hereof is, because the wife is holden in law a⁴² part of her husband, and therefore if affinity

⁴¹Beza de repudijs. 82.

⁴²Cuius nuptias inire non licet, eius nec coniugis licet.

hinders marriage with one of the married couples, it hindreth as well in the like case and respect, marriage with the other.

And thus much touching the distance of blood, which in the choice of persons fit for marriage, is most necessarily to be observed. For in the 18. Chapter of *Leviticus*, there are sixteen several sorts of persons with whom marriage is forbidden. The first is the mother. The second is the step-mother. The third, the sister by the same father and mother. The fourth, the half-sister, by one of the parents only. The fifth is the niece by the son. The sixth, the niece by the daughter. The seventh, the fathers sister. The eight, the uncles, that is, the fathers brothers wife. The ninth, the mothers sister. The tenth, the daughter in law, or sons wife. The eleventh, the brothers wife. The twelfth, the wives mother. The thirteenth, the step-daughter, or the wives daughter by another husband, or husbands daughter by a former wife. The fourteenth, is the step-sons daughter, that is, his daughter who was the wives son by another husband. The fifteenth, the step-daughters daughter. The sixteenth, is the wives sister. And not only these, but all other answerable to them, either in the same or like degree, are by equal proportion forbidden to be had in marriage.

It is alleged, that the prohibitions mentioned in that chapter, are merely Mosaic, that is, Ceremonial, and therefore do not bind us now in the new Testament.

Ans. It is a flat untruth; as shall appear by these reasons.

First, the Cananites long before these laws were given by *Moses* to the Israelites, were grievously afflicted for the breach and contempt of the same, as may be gathered by that which is written in the same chapter of *Leviticus*,⁴³ vers. 3. *According to the works of the land of Canaan, ye shall not do, neither walk in their ordinances.* And vers. 24. *You shall not defile your selves*

⁴³Chap. 18.

in any of these things: for in all these the nations are defiled, which I will cast out before you. vers. 25. And the land is defiled; therefore I will visit the wickedness thereof upon it, and the land shall vomit out her inhabitants.

Secondly, the Prophets themselves after Moses, are wont to account these prohibitions not Ceremonial, but Moral. Ezech. 22. 10. In thee, have they discovered their fathers shame; in thee have they vexed her, that was polluted in her flowers. Amos 2. 7. A man and his father will go in to a maid, to profane the name of my holiness.

Thirdly, the same laws are also urged in the new Testament, wherein Legal Ceremonies were determined, and had their end. Mark. 6. 18. John said to Herod, It is not lawful for thee to have thy brothers wife. 1. Cor. 5. 1. It is heard certainly, that there is Fornication among you, and such Fornication, as is not once named among the Gentiles, that one should have his fathers wife.

Fourthly, nature it self by proper instinct, abhorreth such kind of conjunctions, & the prohibitions of them, have sufficient ground, even from her principles. For to this purpose it is, that not only the laws of the Roman Emperors, but also the civil Canons and constitutions of men, very skilful in that kind, have in all ages expressly been made against such persons, as have offended in those societies forbidden by the law of Moses.

Fifthly, The Lord himself hath denounced many and great punishments to be inflicted upon the breach of the same laws. Levit. 20. 11. The man that lieth with his fathers wife, because he hath uncovered his fathers shame, they shall both die; their blood shall be upon them. vers. 12. The man that lieth with his daughter in law, they both shall die the death; they have wrought abomination; their blood shall be upon them. vers. 14. He that takes a wife and her mother, commiteth wickedness; they shall burn him and them with fire. vers. 16. The man that taketh his

sister, his fathers daughter, or his mothers daughter, and seeth her shame, and she seeth his shame; it is villainy: therefore they shall be cut off in the sight of their people. *vers.* 20. The man that lieth with his fathers brothers wife, and uncovereth his uncles shame, they shall bear their iniquity, & shall die childless. *Deut.* 23. 2. A bastard shall not enter into the congregation of the Lord, even to his tenth generation. *Deut.* 27. 20. Cursed be he that lieth with his fathers wife.

The third essential sign of a person marriageable, is ability and fitness for procreation. And this in an holy and modest sort is always supposed to be in the party contracted, unless the contrary be manifestly known, & discerned by some apparent infirmity in the body.

Hence I gather, that it is unlawful to make a contract with such a person, as is unfit for the use of marriage, either by natural constitution of body, or by accident. For example; in regard of sickness, or of frigidity, or of the palsy uncurable, or lastly of the deprivation of the parts belonging to generation. These and such like impediments are of force, though a contract should already be made, yet to make it a mere nullity, considering that God maketh known his will in them, that he approves not of such espousals, but would have them to be dissolved.

Again, that which is made between two persons that are⁴⁴ under age, is to be holden and accounted as unlawful. And though it should be done by consent, or commandment of parents, yet it is of no moment. This always remembered; except it be ratified by a new consent of the parties after they be come to age; or that they in the mean time have had private and carnal copulation one with another.

Again, put the case two be espoused, whereof the one is under age, the other of full age; the party that is of full age, ought

⁴⁴Impuberes.

to tarry and expect the time, wherein the issue of the espousals formerly made, may be manifested. And the under-aged may not break off consent, either before, or when they be come to perfect years, but must rest in expectation of the accomplishment of the contract, when he or she shall be out of their minority.

The fourth essential sign, is a sound and healthful constitution of body, free from diseases incurably contagious.

Whereupon it followeth, that a promise of marriage made between those, whereof the one hath a disease so loathsome, as that the other upon good ground cannot possibly endure familiar society and company with him; though it do not wholly hinder the use of the body, is utterly unlawful.

Of this sort is the Leprosy, the French pox and such like. For seeing there cannot be any matrimonial use of them that are tainted with such contagious diseases, without apparent danger of infecting each other, and those also, which have society with them, and others; yea and by this means the issue of their bodies, growing of a corrupted seed, are even borne to perpetual misery, and to the great hurt and hindrance of the common-wealth; the case is plain, that such marriages cannot be undertaken with good conscience.

Now if the one party have a disease, though not contagious, yet either incurable, or so⁴⁵ loathsome, as the other hath just cause to abhor his company; for example, if he be sick of a Lethargy, of the falling sickness, or such like diseases; then, though it be lawful to match with him, because such a contract is not expressly forbidden, neither is it apparently hurtful to the common-wealth, yet is it not expedient, because the disease being loathsome to the sound party, the marriage also will become unprofitable, and the party in danger of breaking the

⁴⁵Turpi.

commandment of the Moral law, wherein God forbiddeth to commit adultery.

The fifth essential sign of a person marriageable, is freedom from marriage; whereby both the parties which enter contract, are so at liberty, that neither the man hath in present another wife, or is promised to another; nor the woman hath another husband, or is promised to another. The reason is, because God himself esteemeth that marriage only lawful, wherein one man is joined to one woman, and they both into one flesh; & consequently judgeth it unlawful, as for one man to have more wives; so for one woman at the same time to have more husbands.

Hence it followeth, that it is against the law of God, and the first institution of marriage, that a contract should be made between such persons, whereof the one is formerly betrothed to another. For so long as the first promise stands in force, the man can no more be betrothed to two women, then he may be the husband of two wives; because the spouse by the bond of her promise to the man, becomes a wife; and the man by the bond of his promise to the woman, becomes an husband, Deut. 22. 23. 24.

Again, there can be no sure-making, and consequently no marriage with such a one, as either hath been divorced without a sufficient cause, or hath wrongfully forsaken and rejected a lawful mate before. To this purpose saith our Saviour Christ, Matth. 19. 9. *I say unto you, that whosoever shall put away his wife, except it be for whoredom, & marieth another, commiteth adultery; and whosoever marrieth her which is divorced, commiteth adultery.* And Saint Paul, 1. Cor. 7. 11. *But & if she depart, let her remain unmarried, or be reconciled unto her husband, and let not the husband put away his wife.*

Hitherto I have treated of essential marks, which belong to the being of marriage. Now I come to those that are accidental.

An accidental mark of a person fit for marriage, is that, which belongeth not to the being, but to the well being, that is, to the holiness and purity of that estate. And of this sort, there be three that are the principal.

The first is parity or equality, in regard of Christian religion; For in marriage, there is a special care to be had, that believers be matched with believers, and Christians with Christians; not believers with Infidels, or Christians with Pagans. For the former sort are only and always to be made and kept, and the latter to be avoided, yea inhibited by positive laws and constitutions, the breach whereof in such cases is severely to be punished. The neglect of this point was one principal cause of the destruction of the old world by the flood. Gen. 6. 2. *The sons of God saw the daughters of men, that they were fair, and they took them wives of all that they liked.* Abraham observed it in the marriage of Isaac his son, and for that purpose took an oath of his servant. Gen. 24. 3. *I will make thee swear by the Lord God of heaven, and God of the earth, that thou shalt not take a wife unto my son, of the daughters of the Cananites among whom I dwell.* And in imitation of that holy example, Isaac also gives a charge unto Jacob his son, that he should *not take a wife of the daughters of Canaan*, Gen. 28. 1. Afterward there was an express law of God given by Moses, touching the Gentiles that lived in that land. Exod. 34. 15. *Beware that thou make not a covenant with the inhabitants of the land, &c.* Vers. 16. *And take of their daughters unto thy sons, and their daughters go a whoring after their gods; and make thy sons go a whoring after their gods.* And the same law was urged by Ezra the Priest in his time. Ezra 10. 11. *Separate your selves from the people of the land, and from the strange wives.* Lastly, S. Paul exhorteth the Corinthians, 2. Cor. 6. 14. *Be not unequally yoked with the Infidels.* And Titus 3. 10. *Reject him that is an heretic, after once or twice admonition.*

But suppose it falleth out, that the espousals be past, and that both parties at the first were believers, or one of them only; or that at first both were unbelievers, and yet afterward one of them is converted to the faith; or further, admit that both were believers at the contract, yet within some time after, the one becomes an Infidel, that is to say, a Jew, a Turk, or an obstinate Heretic, that denies the faith, and razeth even the very foundation of Religion; in this case what is to be done? Surely even such espousals once made and ended, if there be no other impediments but these, are to stand & continue firm and unchangeable; so long as the unbelieving party doth willingly yield, and submit him or her self to the performance of marriage duties, properly belonging to man and wife. My reason is, the speech of *Paul*, who saith; *If any brother have a wife, that believeth not, if she be content to dwell with him, let him not forsake her. Again, The woman which hath an husband that believeth not, if he be content to dwell with her, let her not forsake him*, 1. Cor. 7. 12. 13.

If it be here alleged, that the sin of adultery dissolves the bond both of contract and marriage, and therefore much more doth idolatry or infidelity, which is a sin far more detestable then adultery: I answer, that the question is not, whether of these is the greater sin, or more heinous in the sight of God; for Infidelity in both respects far exceedeth the other; but whether of them is more repugnant to the nature and condition of wedlock. Now the sin of adultery is that alone, which breaks the bond, and renounceth the troth plighted in marriage, and is the proper cause of a divorce, and not Idolatry or Infidelity.

The second note, is parity or equality in regard of age and condition.

First of Age; because though the marriage of persons, whose years are far unequal, is not expressly forbidden in the word; yet

is it agreeable to the rules of expediency and decency, that the aged should match with the aged, the younger with the younger.

Reasons are these. First, because the comforts of this society in likelihood will by this means always be equal, and consequently bring the more contentment to either party. Secondly, these unequal marriages are often times offensive to others. Thirdly, they cannot but in some cases prove offensive even to themselves. For when a man of great years matcheth with a woman very young, or a young stripling marrieth an aged woman; the elder party growing weak and impotent, may the sooner come to be unfit for marriage duties; and the younger being of greater strength and ability,, the more in danger of being exposed to incontinency, and that in the highest degree, unless he be restrained by Gods special grace. For this cause it was a great fault, wherewith one *Apuleius* was justly charged, that being but a very young man, he was married to a wife of 60. Years of age.

Secondly, of condition and estate. For this also is answerable unto the Apostles rule, who exhorteth men to think of, and to do those things which are *true, just, commendable, and of good report*, Philip. 4. 8. Thus it is a seemly and commendable practise, that, the Prince, the Noble man, the free-man, the gentleman, the yeoman, &c. Should be joined in society with them, that are of the same or like condition with themselves, and not otherwise. For this cause are the ancient Romans greatly to be commended, who (as we read in their stories) had such a careful respect of their marriages in this behalf, that they made laws and constitutions for the restraining of inequality of worldly estate in such societies, by this means preventing much confusion and disturbance in families, and other orders of men. Whereunto agrees that of *Tertullian*,⁴⁶ who saith, *That if a free woman had affianced her self to him that was a bond-man to another, and*

⁴⁶Tertul. ad vxor. li. 2.

being thrice admonished thereof, by him that had authority over her, did notwithstanding persevere in her purpose; she should, according to the law, lose her freedom.

The third note is public honesty and credit, whereby the contract made becomes a matter of good report, well thought and spoken of abroad. *Whatsoever things are of good report, think on them.* Philip. 4. 8. From hence I gather,

I. That it is an unseemly thing for a man to make promise of marriage to such a woman, as hath been formerly deflowered, or hath and is, or may be convinced of adultery & uncleanness. Nay I add further, that a contract made with such a one, as himself hath before deflowered, is by the law of God unlawful. For the adulterer and the adulteress, by divine law should be put to death, and be cut off from humane society, Levit. 20. 10.

II. It is altogether inexpedient, that a woman should be married to such a man, as hath a concubine, unless he formerly renounce her, and testify the same by true and unfeigned repentance. The reason is plain. Such a marriage cannot be undertaken in the Lord. And the party himself, being before polluted with his concubine, becomes now by marriage to another, an adulterer; and she that is married unto him, by this her act yields consent unto his adultery.

III. That no man professing Christian religion, much less a Minister of the word, ought to take to himself in marriage a harlot, a defamed woman, or one that comes of infamous parents, though she be repentant. Levit. 21. 7. *The Priest shall not take to wife one that is a whore, or profaned*, that is to say, which hath an evil name, or comes of ignominious parents. Which law, though it was in part Ceremonial and Levitical, and so far forth abrogate; yet having in it some Morality, in as much as the reason thereof (to wit, because it is reproachful to a Christian, but specially to a Minister) is still in force, it is to be holden perpetual. For Chris-

tian profession, and the Ecclesiastical Ministry is principally to be respected, and whatsoever may prejudice the dignity and credit thereof, to be avoided.

Object. 1. The Prophet *Hosea* was commanded to take unto him *a wife of fornication*, that is, an harlot, *Hosea* 1. 2. *Answ.* *Hosea* did it not in deed, but in type and resemblance. For God commanded him in his prophecy, to take upon him (as it were) the person of a fornicator, that by this means he might the more effectually charge and convince the Israelites of their unclean and unchaste conversation.

Object. 2. The Lord also forbiddeth the Priest to marry a widow, *Levit.* 21. 14. It may seem therefore unexpedient for a Minister so to do. *Answ.* The law concerning the marriage of a virgin, and not a widow, was not enjoined to all Priests, but only to the chief Priest, *Levit.* 21. 10. And he also might marry a widow, but such a one only, as had been the widow of a Priest, and not any other, *Ezech.* 44. 22. Now this was commanded them upon special consideration. For the High Priest was a type of Christ, and Christ was in time to come to call his Church, the elect, among the Gentiles, and to marry them as a virgin espoused unto himself. Yea he was also to marry his Church as a widow, but the widow of a Priest only, because he was to gather to himself the remnant of the Church of the Jews; howbeit not all of them, but such only as came of the holy Fathers, and were Israelites, not according to the flesh, but according to the promise.

IV. That it is not meet for a man to be contracted to the sister of her that is already affianced unto him.

And so much of the first point, required to the making of a contract, namely, the choice of a person fit for marriage.

6. Of Consent in the Contract

The second thing required to the making of a contract, is the free and full consent of the parties, which is indeed the very soul and life of the contract. And this consent standeth in the approbation, or (as we commonly call it) the *Sure-making* of the parties contracted.

Consent in this case is twofold, either of the man and the woman, or of their parents.

Touching the first; That the man and the woman may yield free consent each to other, it is necessary that, in respect of understanding, their judgement should be sound; and in regard of will, their choice should be free. And here sundry cases are to be resolved.

I. Case. When the contract flows not from the will and good liking of the parties, but is forced and compelled, what is then to be done?

Ans. If the espousals have been made through force, or fear; I mean, such as may befall a constant, and resolute man, and which hath been wrought, upon good knowledge, and consideration; then are they of no moment, & in truth mere nullities; because there is wanting to them the free and voluntary accord, and assent of both parties. Nevertheless, if afterward they shall grow to a new consent, or both yield to an after-acceptation of that which was formerly made, the espousals shall then stand in force; without further exception, or contradiction.

II. Case. But how if consent be past, and in process of time it appears to the espoused persons, that they have erred, either in choice, or consent, or both?

Answ. There is a three-fold error in consent; the one of the person, the other of the ability, or estate of the person; the third of the quality.

Error in respect of the person, is, when one person is taken for another; or when the contract is made between two, whereof the one was taken to be such a party, as afterwards he proved not to be. Now where this error is committed, it is a plain case, there was no consent; and therefore the contract, upon certain knowledge thereof, is quite frustrate. For the knowledge of the party is the ground of consent, and belongs consequently to the very substance of marriage.

Nevertheless, if, the error being once known, the parties have had secret society one with another; & have either again consented, or grown to an after-acceptation of the consent before made, the contract may and doth stand in full force. For example: *Jacob*, by the deceit of *Laban*, had taken *Leah* for *Rachel*, to his wife; so saith the text, *When the evening was come, Laban took Leah his daughter, and brought her to him, and he went in unto her*, Gen. 29. 23. *But when the morning was come, behold it was Leah*, 25. Now by the judgement of the best Divines, *Jacob* might justly have renounced *Leah*, if he would, because *Laban* had given her unto him for *Rachel*, and so deceived him; yet he would not use extremity, but kept her as his wife.

If it be said, there was an error in the person, therefore no consent, and so *Leah* was not his lawful wife, but *Rachel*. I answer, that *Jacob* did renew his consent afterward, & that renewed consent following upon their knowing one of another, made her his wife, though in extremity & rigor she was not. Again, *Rachel* was indeed the party to whom he was espoused, by the former contract; and therefore, upon their mutual agreement afterward, she also became his wife. So saith the holy Ghost, vers. 27. *Fulfill seven years for her, and we will also give thee Rachel for*

thy service, &c. V. 28. Then Jacob did so, and Laban gave him Rachel his daughter to be his wife.

Error of the ability or estate is, when one of the parties to whom consent was given by the other, being taken for rich and wealthy, in the issue proves to have been very poor, and not sufficient to maintain that state of life.

Touching this error, it is to be considered, whether the contract was made absolute, for the time present, & so for ever afterward, or conditional for time to come only. If it were absolute, that is, conceived in terms of the present time, then though the deceit be very offensive to the party deluded, and upon his complaint ought in equity to be punished by the Magistrate; yet it is not of force to break off the contract; because the ability of either or both parties belongs not to the essence of marriage. But if it were for time to come and conditionate, then he or she that made promise upon this condition, is free and not bound in conscience to fulfill the promise; unless the condition expressed aforehand be kept, and performed.

Error of the quality of the person, is, when she which was in the espousals taken to be a virgin, is afterward found to be with child by another, before they come together. By this error the Covenant is made void, and becomes a mere nullity; so as the man cannot be compelled, upon true and certain knowledge thereof, to marry the woman; but may renounce her, unless both parties come to a new agreement, or have privately known each other upon mutual consent. For first, God did in express terms command the Jews, that such a woman should be stoned to death: Deut. 22. 20. *If the maid (that was given to wife) be not found a virgin,* vers. 21. *then shall they bring the maid to the door of her fathers house, and the men of her city shall stone her with stones to death, because she hath wrought folly in Israel, by playing the whore in her fathers house.* Therefore it was not the will of

God, that she should be retained as a wife, but utterly rejected and forsaken. Again, this was so usual a practise in Israel upon Gods commandment, that godly and righteous men, upon the discovery of this error, would not in conscience be persuaded, to marry them to whom they had been betrothed, Matth. 1. 18. *Joseph her husband* (having found, before *Mary* and *he* came together, that she was with child) *being a just man, and not willing to make her a public example, was minded to put her away secretly.*

III. Case. What shall we think of the espousals of such, as are furious, and frantic?

Ans. We must distinguish of these diseases. For Madness is, either perpetual, or by fits only with intermission.

If it be perpetual, the case is clear, that whether one of the parties only, or both be frantic, the contract made between them, is altogether unprofitable & vain. For such know not what they do when they make a promise, and the consent which passeth betwixt them cannot be free, full and perfect, but must needs be hindered and prejudiced by the heat and violence of their disease.

Now although perpetual madness be a just impediment of marriage, and a sufficient cause to dissolve a contract, yet it is meet that there be a convenient space of time agreed upon, wherein all means may be used for the curing of this disease, to the end that Gods will touching their amendment may be the more evidently known; and both the parties themselves, and their friends may give testimony to the world, that they have had a careful respect of the contract before made.

Again, if it be not continual, but *by*⁴⁷ *fits*, so as they have some good days, and quiet intermission, the case is otherwise. For the contract shall be ratified, and stand in force: provided, that it was manifestly known, that the said parties were both in their right

⁴⁷Dilucida interualla.

wits, before they plight their troth each to other; and themselves be willing afterwards to confirm their promise formerly made, by renewing their consent.

Consent of the parents, is that act whereby they give their word and promise, to bestow their children in marriage, and in regard of right, do indeed presently bestow them.

Therefore private contracts, that are made without free and lawful consent of parents, are not only unprofitable and unlawful, but even by the law of God mere nullities. Reasons. I. They are contrary to the express will and commandment of God: Exod. 20. *honor thy father and thy mother*. II. They are flat repugnant to natural equity; which teacheth, that he who hath not power, nor right over himself, cannot bind himself by promise to another. Now children have not power over themselves,⁴⁸ but are under the government, & at the disposition of their parents; therefore the covenants which they make, are not made and appointed of God, and those which God maketh not, are in deed and truth none at all.

⁴⁸Gal. 4. 1.

7. Of Rejection, or Refusal of the Contract

Contrary to a complete and lawful contract,⁴⁹ is Rejection, whereby the contract is dissolved, or broken off.

A lawful contract is then dissolved, when some great and heinous fault followeth immediately upon it, in either of the parties espoused. And from hence arise divers and sundry cases to be set down and resolved.

The first is this. What is to be done, when some disease befalls one of the parties immediately after the contract made?

Ans. Those diseases which take away the use of the body, and altogether disable the party from the performance of the promise made, in respect of marriage duties, are very just impediments of marriage, and consequently do break off the contract. Of which sort are incurable palsies, frigidity, and such like, whereof I have spoken before.

Nevertheless a covenant once made, is not suddenly to be renounced, for fear of breeding offence. And therefore some longer respite is to be taken from the time of the contract, in which they are to rest in expectation of amendment, before the said diseases be publicly and solemnly declared to be incurable, and consequently that the covenant made is become void.

Now, if the disease do not for the present take away the use of the body, and yet in time proves incurably contagious, and so loathsome, that the one may justly fear to keep and converse with

⁴⁹Repudium.

the other; as it falleth out when one is tainted with leprosy; then the contract is utterly to be dissolved, as if God himself should have commanded it, though the promise was formerly made, & the parties themselves should be unwilling. God hath ordained Matrimony to help, not to hurt either the persons themselves, or others. Where therefore these diseases be, which may infect, hurt, or destroy others, there God hath, as it were, testified from heaven, that the act done is not pleasing unto him, and that presently it ought to be frustrate.

The contract being thus once dissolved, the sounder party shall be at his, or her liberty to marry again. But the diseased is by the Magistrates authority, to be forbidden society with any other in way of marriage, and commanded to lead his life, where he may conveniently from company, for fear of infection. And withal he is for his own part, to sue unto God by prayer in faith for the gift of continency. For certain it is, that he to whom God hath denied the power of using marriage with good conscience, is thereby even called to continency and single life.

But if the disease be not contagious, yet either incurable, or so nasty, that either of the espoused hath just cause to be afraid of the others company; then both are to be advised, not to claim their right, but willingly to surrender it each to other by mutual consent, that they may be free again, & not bound by any former promise to live together as man and wife. Considering that they have no hope mutually to converse together, with comfort & contentment, while they so remain.

Upon this advice given by their lawful Pastor, or some in his stead; if they both yield, or one of them at the least desires to be at his own liberty, the espousals are forthwith to be broken off. But if neither will consent to a separation, but rather proceed as they have begun, and in probability the one have no just cause

to hold the other in suspicion, in respect of contagion; they are not to be hindered from the consummation of their marriage.

Furthermore, though one of them should have a disease, which is continual without intermission, & yet curable, or any other inconvenience should befall either of them, after the sure-making, whereby they become lame, deaf, or dumb, &c. Yet this is not a sufficient cause to move them to renounce, and dissolve the contract.

A second case. What if it falleth out, that after the finishing of the contract, one of the espoused persons be long absent from the other, so as the absence be prejudicial to the marriage, that should ensue upon the contract?

Answ. Inquiry must be made, whether this absence be voluntary, or against the will of the party.

If it be voluntary. For example; if the man upon an honest and just cause, the woman also being privy thereunto, shall go beyond seas, and being admonished of his duty before hand, shall notwithstanding stay a whole year or more, and will not return, but further wilfully absent himself; then may it be lawful to the woman, to crave of the public Magistrate a dissolution of the covenant made, & consequently marry another man, unless the former, to whom she was contracted, be heard of. If he be, then shall it be lawful for him to plead for himself, and tendering no just cause of his refusal, he shall be forced by the Magistrates authority to stand to his promise, and take the woman for his wife. And the same order is to be taken in the wilful absence of the woman, after she is contracted.

If again, the man or woman shall upon an evil mind, and with purpose to deceive each other, absent themselves, and depart; means must be used, that they may be admonished of their duty. That being done, or at least undertaken, and yet the party offending will not appear, if the other that is present, upon certain

knowledge of his, or her want in respect of continency, shall sue to the Magistrate; after public and solemn notice given, the contract may be broken.

But if on the other side, either of them be absent against their will, and intendeth no fraud or deceit, but is violently detained, by captivity, imprisonment, sickness, force, banishment, transportation or such like; then the party present being desirous of the consummation of the marriage, ought either to make means unto him, and expect his return, or have certain notice of his death, before she promise, or have to do with any other in way of marriage.

A third case. What if after the contract, one of the parties becomes furious, or mad?

Answ. If the disease be continual, without intermission, in all equity and likelihood, the espousals are to be dissolved, unless both parties after knowledge and experience of the disease, have known one another: yet in this, and all such like cases, it is fit that all good means be tried and used, and sufficient time be given for the restoring of the diseased, to their former good estate, and for the accomplishment of the marriage lawfully begun, as before.

8. Of Marriage

Marriage is that, whereby the conjunction formerly begun in the contract, is solemnly manifested, and brought to perfection. Marriage is consummate by three sorts of actions; one of the parents of the bride and Bridegroom, the other of the Minister in public, the third of the persons coupled together.

The action of the parents is upon the marriage-day, to bring the bride, and deliver her to the bride-groom, that they two may become actually man and wife, and perform each to other all matrimonial duties.

And where the marriage is complete, in any other manner, so as the parents upon sound judgement and deliberation, shall deny their full and free consent, either in express words, or by connivence and silence, and that upon just and lawful cause; there, though in the civil courts of men, it may stand, and the children borne therein be legitimate before men, yet the truth is, before God it is of no force, but a mere nullity.

And because this doctrine, touching consent of parents in these Cases, is of great use, and availeth much to the supporting and maintaining of families; I will first open the truth thereof, and then prove it by reasons.

Under the name of parents are comprehended; First, the Father and mother. Secondly, all Tutors and Guardians, who have the proper & sole charge of wards, or others under years of discretion. Thirdly, all such as are kindred of blood, who are in stead of parents to children, as the uncle by the fathers side, the uncle by the mothers side, and such like.

Now touching the consent of parents, that is, of father and mother, I hold it requisite of necessity to marriage: For the authority of parents must not be resisted, or violated. As for Tutors, and such as have the place of parents, their consent is not required of necessity, but⁵⁰ of honesty at least, because the power and authority of the parent, though it be not taken away, yet it is lessened, when it is either transferred to another person, or in part resteth in the child already bestowed.

Secondly, by parents consent, I understand that which they give, not rashly, unadvisedly, or foolishly, but out of good & wise consideration, and upon true and sound judgement, of the business in hand: For otherwise, as much as in them lieth, they make the marriage void and of none effect. And they are then thought to carry a right judgement of the thing, when they be able to yield a just cause of yielding, or denying their consent. For example; if a father denies to bestow his daughter *Julia* upon *Sempronius*, because he knows him to be an Arrian, a Pelagian, or of any other sort of Heretics; he withholdeth his consent upon a good ground, & he doth that which he doth, of judgement.

Yet further I add, that where the parents do dissent, and can yield no probable cause thereof; the marriage consummate without their consent, ought to be confirmed and ratified by the authority of the Magistrate, who is *Pater patriae*. And this seems to be the most equal course, both for the avoiding of greater scandals, & for the preventing of wrong, that may otherwise be done in some particular case, as to a woman that is deflowered and rejected.

Thirdly, consent of parents is either expressed, or implied; Expressed, when it is given by words; Implied, when it is yielded by silence. For it standeth with most equity and indifferency, to

⁵⁰De honestate.

think that those parents do give consent, who do not by word expressly deny the same.

Fourthly, children are either subject to the authority of their parents in the family; or at their own liberty, & out of their parents subjection. Those that are at liberty, are tied necessarily to subjection in respect of marriage; but the other being still of the family, and under jurisdiction, are bound to be ordered, by their parents in the bestowing of themselves.

This is briefly the meaning of the question in hand. Now, for proof of this point, I will propound three sorts of arguments, whereof some are drawn from the law of God, some from the light of nature, and some from the judgement of the ancient Church.

For the first sort. According to the law of God, marriage is not only a civil and politic, but also a divine and spiritual conjunction, the author and ordainer whereof, upon special cause, was God himself: This our Saviour Christ witnesseth, when he saith, *Those whom God hath joined together, let no man separate*, Matth. 19. 6. That therefore marriages may be soundly ratified and confirmed, the authority and power of God himself is necessarily to be interposed.

If it be asked, How God that is in heaven, should bring and join together man and wife upon the earth?

I answer, that he doth it not immediately by himself, as he brought *Eve* unto *Adam*, but in & by some solemn and lawful means. And this mean, is that great and ancient power and prerogative of parents. And the law of God hath given them this power, not in civil contracts and compositions alone, but even in the beginning and accomplishing of marriages. Deut. 7. 3. *Thou shalt not give thy daughter unto his son, nor take his daughter unto thy son*. Jerem. 29. 6. *Take wives for your sons, and give your daughters unto husbands, that they may bear sons*

and daughters. 1. Cor. 7. 36. But if any man think that it is uncomely for his virgin, if she pass the flower of her age, and need so require, let him do what he will, he sinneth not, let them be married.

Hence it was, that *Abraham* by right of this authority, gave order what wife his servant should provide for his son; *Thou shalt not take a wife to my son of the daughters of the Canaanites; But thou shalt go unto my country, and to my kindred, and take a wife unto my son Isaac*, Gen. 24. 3. 4. *Samson*, though he was inflamed with the love of the woman in *Timnath*, whom he saw to be beautiful in his eyes, yet he durst not take her to his wife, till she was given him of his parents, Judg. 14. It was an express law of God, that *if a man enticed a maid that was not betrothed, and lay with her, he should endow her, and take her to his wife*: But how? Mark in what manner the holy Ghost proceedeth, *If her father refuse to give her to him, he shall pay money according to the dowry of virgins*, Exod. 22. 16. 17. Deut. 22. 28. 29. In which text, *Moses* plainly teacheth, that the consent of the two parties is not sufficient, no not though they have had society together, unless they have the free consent of their parents also. In like manner it was ordained by God, Numb. 30. 4. 5. 6. *That if a woman vowed a vow unto the Lord, being in her fathers house, & her father hearing it, holdeth his peace concerning her, that is, approves her vow by winking at it, her vow shall stand. But if her father disallow her, that is, giveth no approbation or consent unto the vow made, it shall be of no value, and the Lord will forgive her, because her father consented not.* Now, if the vow of children made unto God, and pertaining to his worship, cannot be ratified without the parents approbation; of how much less force shall any private contract or marriage be, without their allowance?

The second argument is taken from the light of nature, and it is gathered by proportion on this manner: A son privily alienateth and selleth away his fathers lands, either in whole or in part. The question is, whether this alienation be good in law, yea or no? Answer is, No. And why? Because the land did not belong to the son, but was part of his fathers substance. In like manner, a son alienates himself, and is betrothed to a woman, to marry her without his parents knowledge: Is this act of the son warrantable and sound? By no means; for the son in respect of his body, is part of the fathers goods, and may not be alienated from him without consent. A notable reason hereof we find in Job 1. For when God had given Satan power to destroy and spoil all *Jobs* goods, and whatsoever he had, the devil doth not only touch the wealth of *Job*, but his children also, as a part of his substance. In this respect the Jews were permitted by God to sell their children. Exodus 21. 7.

Again, for the accomplishment of marriage, there must needs be a mutual donation, between the spouse and the espoused. And what is that which is mutually given? Surely their persons, or rather their bodies each to other, for so *Paul* saith, 1. Cor. 7. 2. *Let every man have his wife, and let every woman have her own husband.* But by whom is this donation to be made? By sons and daughters that are in the family, under the jurisdiction of their parents? It may not be; For nature her self taketh it for granted, that he which is not at his own liberty, cannot yield to the giving of himself. The donation therefore remains in the right of the parent, in as much as the will & consent of the child, ought to depend upon his will and consent, to whom God hath given power and authority in this behalf.

In the third place, let the judgement of the ancient Church be observed. *Ambrose*, in his first book of the Patriarch *Abraham*, chap. 9. Requires this consent in marriages, which he saith is

so equal and agreeable to nature, that even the Poets acknowledged the same. For which purpose he reciteth two verses out of the *Grecian Poet Euripides*, in his Tragedy called *Andromacha*, wherein in when *Orestes* desired to marry *Hermion*, she frames him this answer, That the matter of her marriage wholly depended upon the pleasure and authority of her father, & was not in her own power or liberty. *Innocentius*, who was both a Pope and Martyr, in his decretal epistles, so strictly requireth consent of parents,⁵¹ *as where it is wanting, he concludes the marriage to be void.* In the Council of Lateran, it was decreed that *Clandestine contracts & secret marriages, made and undertaken between party and party, should be holden as unlawful as marriages in those degrees of consanguinity and affinity, which are forbidden by God.* *Tertullian* saith,⁵² *That in this world the son cannot*⁵³ *rightly and lawfully marry without the allowance of his father.* *Basil* in an Epistle to *Amphilochius* Bishop of *Iconium*, affirmeth; *That marriages which are made without them which have power over the parties, are fornications, and therefore that they which are joined together in marriage, while their parents or masters live, are in no sort free from imputation of sin, until they have approbation from them, for then marriage is ratified & confirmed, when they have yielded allowance thereunto.*

The second Action touching the consummation of marriage, is the action of the Minister. And that is the blessing or sanctification thereof, which is a solemn work, whereby the Minister pronouncing the parties contracted to be man and wife before the whole congregation, commendeth them and their estate unto God by solemn prayer.

⁵¹Sub Innocent. 3. canon. 51.

⁵²Tertul. lib. ad vxorem, 2. ad finem.

⁵³Ritè & Iure. Basil. epist. 1. ad Amphiloch. Canon, 42.

This solemn sanctification is grounded upon the practise of God himself, who having given *Eve* to *Adam*, blessed them, saying, *Increase and multiply*, Gen. 2. 22. And 1. 27. For that which God then gave, the Minister standing in his room, now prayeth may be given to the man and wife. Yea it is agreeable to the general rule of the Apostle, *Let all things be done decently and in order*, 1. Cor. 14. 40.

Now that this action is to be approved and used in the Church, appears by these reasons.

- I. Marriage as it is a public action, so it is after a sort a spiritual and divine ordinance, whereby it differeth from the contract: For the contract being merely civil, as it standeth by consent of men, so by the same consent, it may be broken and dissolved, but with marriage it is otherwise.
- II. Marriage is the Seminary of the Church and commonwealth.
- III. It was the practise of the Primitive Church. *Tertullian* speaking of the marriage of Christians with Christians,⁵⁴ acknowledgeth himself not to be able sufficiently to declare the happiness of *that conjunction which is made by the Church, consecrated by prayers &⁵⁵ solemn service, witnessed by the Angels, and ratified by God himself*. *Nicephorus* reporteth of one *Synesius*, who avouched that *God & the laws, and the holy hand of Thesphylus had given him a wife*. *Ambrose* saith, *That marriage ought to be sanctified, with the veil wherewith the Priest was wont to cover the bride and the bride-groom in the public congregation, and with his blessing*.

⁵⁴Lib. 2. ad vxorem.

⁵⁵Oblationem sic exponit Beatus Rhenanus. Niceph. lib. 14. cap. 55. Ambros. epistolar. lib. 9. epist. 70. ad Vigilium.

The third and last action belonging to the accomplishment of this estate, is, that of the parties themselves, whereby the bride is in decent and modest manner, brought unto the house and home of the bride-groom. It is the law of this estate published by God himself in Paradise, that the man, even in respect of habitation, *should leave father and mother and cleave to his wife*, Gen. 2. 24,

Here question is moved, whether marriage is to be solemnized with mirth and feasting. *Answ.* I. It is lawful and warrantable to use feasting and mirth at marriages, because these be things in-different, and we have examples thereof in the Scriptures. *Laban* made a feast at the wedding of *Jacob* and *Rachel*, and invited all the men of the place to it, Gen. 29. 22. Christ himself did approve the resort of people to the marriage at Cana in Galilee, both by his presence, and by that honorable gift of six water-pots of the best wine, Joh. 2. 2. 7. 8. II. It is not only lawful, but convenient and fit to be done, if there be ability; according to the commendable custom of the place & country wherein men do dwell; so as in the use thereof, these cautions be observed. First, that in mirth and merry-making, there be care had that nothing be done which is dishonest, profane, or of ill report. Philip. 4. 8. *Whatsoever things are honest, pure, of good report, think on these things.* Secondly, That joy in them be mixed and moderated with the fear of God, without which *Laughter* and rejoicing is mere madness, Eccles. 2. 2. Thirdly, That it be performed in a moderate and sober use of the creatures, without riot & excess. Thus we read that at the great feast of *Ahashuerosh*, it was appointed by the King himself, *that they should drink orderly*, & none might compel another to drink more then he thought convenient, Esther 1. 8. And where weddings are kept contrary to these directions, they are not feasts celebrated unto God, but unto the devil; which also may be said of all other festival meetings.

And so much touching the point of marriage, in which this is to be remembered for a conclusion, That where there is generally a nullity in the contract, or a separation following upon it, there is also a nullity in regard of the consummation of marriage.

9. Of the Duties of Married Persons

Thus far have we proceeded in the doctrine of marriage; and now we come to the duties which they who be married are to perform each to other.

These are principally two: Cohabitation, and Communion.

Cohabitation is their quiet and comfortable dwelling together in one place, for the better performance of mutual duties. 1. Cor. 7. 10. And to the married command I, not I but the Lord, let not the wife separate her self from her husband: vers. 12. But to the remnant I say, not the Lord, If any brother have an unbelieving wife, and she be content to dwell with him, let him not forsake her: vers. 13. And the wife which hath an unbelieving husband, which is content to dwell with her, let her not forsake him. 1. Pet. 3. 7. Likewise let the men dwell together, as cometh them that have knowledge; giving honor to the woman as to the weaker vessel, even as they which are heirs together of the grace of life, that your prayers be not interrupted.

This duty must be kept especially the first year of marriage, Deut. 24. 5. *When a man taketh a wife, he shall not go on warfare, neither shall be charged with any business, but shall be free at home one year, & rejoice with his wife which he hath taken.* And the ground of this commandment, no doubt, is, that they might learn to know one anothers conditions, and that they might work a settled affection one towards another, which afterward upon no occasion might be changed.

Yet they may be absent each from other in two cases: First, upon mutual consent for a time, for the performing of some business, that is requisite for the family, Prov. 7. 19. *For mine husband is not at home, he is gone a far journey: at the appointed time he will return again.* Secondly, the like absence is allowed, when some great and weighty affairs either in the Church or common-wealth are in hand, 2. Sam. 11. 9. 10. *But Uriah slept at the door of the Kings Palace, with all the servants of his Lord, and went not down to his house? v. II. Then Uriah answered David; The Ark, and Israel, and Judah dwell in tents, and my Lord Joab, and all the servants of my Lord abide in the open field; shall I then go into my house to eat, and drink, and lie with my wife? By thy life, and by the life of my soul, I will not do this thing.*

Hence ariseth a question: What if after marriage consummate, there grow upon one of the parties a contagious disease that cannot be cured, but is so loathsome, that the other whole party cannot endure cohabitation at all?

Ans. Both the marriage it self, and the duty of dwelling together, ought to continue firm and sure notwithstanding: yet so as the sound party neither may, nor ought in good conscience, to desire conjunction with the other, whereby he, or she may bring infection upon themselves, and consequently hurt their children, and endanger the common-wealth.

But if either of the parties have not the gift of continency, nor cannot abstain; they must sue for it unto God in earnest prayer, who will give it unto them.

For there God hath called a man or woman to continency, where they be necessarily hindered from the use of the ordinary and lawful remedy of the contract.

The contrary to Cohabitation is Desertion.

Desertion is, when one of the married folks, upon a wilful, and obstinate mind of their own head, departeth from the other, without a just, and necessary cause.

Touching this point, there be sundry Cases expounded.

I. Case. Suppose that an husband which is an unbeliever, or an heretic in the foundation, of his own accord, upon detestation of true religion, quite forsakes the believing wife, and denies any more to dwell with her; what is to be done?

Ans. All good means must be first used to bring the infected party to repentance; and when none will succeed, but the case remaineth desperate, then marriage is dissolved on his part, and the believing wife is free to marry another. So saith the Apostle, 1. Cor. 7. 15. *If the unbelieving party depart, let him depart; a brother or a sister is not in subjection in such things; but God hath called us unto peace.* In which words observe a twofold reason: I. He that is at liberty may marry another; now the believing party forsaken, is at liberty; because he is not in subjection in such things: therefore he may marry another. II. God hath called us unto peace, saith *Paul*, and this peace cannot be kept, if the believing party forsaken cannot contain, unless he marry. *Ambrose* upon the place saith,⁵⁶ *That marriage cannot stand firm, which is separated from the worship and service of God; and therefore it is no sin in the party that is for shaken for Gods cause, to be married to another; and the unbeliever departing, sinneth both against God, and against the law of wedlock, because he denies to remain in that estate, in regard of religion. Therefore he breaks the covenant of marriage, and the other is not bound in this case to keep touch with him.*⁵⁷ the master of the sentences, saith, *That the believing party in this case, is not bound to follow the unbeliever when he departeth,*

⁵⁶Ambros. in 1. Cor. 7. 15.

⁵⁷Libr. 4. dist. 39.

*but while he lives may marry another.*⁵⁸ Augustine affirmeth, that even the wife which is joined to her husband in lawful society, if she will not abide with her Christian husband, because he is a Christian, may be forsaken and left, without sin. And it is far better that the covenant should be dissolved, that man and wife have made each with other, then that the Covenant which man hath made with God. The people of Israel being in affliction, were constrained to break the former made with strange women, that they might keep the latter, Ezra 10. 11. 19.

It is alleged, that the unbelieving party may haply repent, and then to make a dissolution is in vain. But I say, that it is as likely that he will never repent, and therefore there is cause that the knot should be dissolved.

Again, it is lawful (say some) to make a divorce out of the case of Adultery. *Answ.* The believing party which is forsaken, is not the cause of the divorce, but is a patient of the separation, wrongfully made by the unbeliever. And Christ where he mentioneth the case of Adultery, Matth. 19. Speaketh of an equal marriage, whereas *Paul* speaks of an unequal.

II. Case. What if there fall out a desertion between two married folks, which are both believers?

Answ. The faulty person, who is the cause of this desertion, is to be forced by course of Civil, and Ecclesiastical censure, to perform his, or her duty. Upon which proceeding, if he remain obstinate and perverse in will; the other must in patience, & earnest prayer unto God, wait the time, until his mind may be changed, and he made to relent by the order of the Magistrate. But if the one of them, by just occasion of fear, be compelled to depart from the other; and cannot return again without apparent danger of life; in this case they are not bound to return; but the delinquent party is to remain solitary, till they be instructed and

⁵⁸Lib. de Fide & operib. cap. 16.

made willing to do their duties: and in the mean while, the party innocent must be resolved that God hath called him or her to single life.

Again, be it that the one is resolutely unwilling to dwell with the other, and thereupon flies away without any fault of the other; if the thing after a long space be sufficiently known before-hand, and all possible means have been used, to reclaim the guilty person; yea being called, he doth not personally appear before the Judge, to yield a reason of the fact; after public and solemn declaration made, the Minister upon such desertion, may pronounce the marriage to be dissolved. For he that upon malice flieth away from his mate, is to be holden in the same terms with an unbeliever, who departs upon detestation of religion, and the service of God, 1. Tim. 5. 8.

Howbeit, if the place whither he is fled, be unknown, and upon his flight there be found some fault in the Plaintiff, she is not to be heard, or set at liberty by the Judge in this case, though she pretend want of the gift of continency.

But suppose he that fled come again unlooked for, and requires his spouse; then in case the former course hath not been taken, nor judgement given against him, they may be reconciled and come together again. If it hath, and matters be concluded, he is not upon his return to be heard, but rather severely punished.

Like unto *Desertion*, is malicious and spiteful dealing of married folks one with the other.

Malicious dealing is, when dwelling together, they require each of other intolerable conditions: and when the one doth not regard nor relieve the other, being in danger or extremity, as is meet. For this is as much as to betray one anothers estate and life to their utter enemies.

Here it may be demanded, what a believer should do, who is in certain and imminent danger, either of loss of life, or breach of conscience, if they both abide together?

Answ. I. This certain danger hath his original, either from one that is a stranger, or from one of the parties: If from a stranger, then the husband either takes upon him the defence of his believing wife, or not; if he doth, then she ought to abide with him. If not, she may depart and provide for her own safety. II. Again, if the husband threateneth hurt, the believing wife may fly in this case; and it is all one, as if the unbelieving man should depart. For to depart from one, and drive one away by threats, are aequipollent.

Neither may this seem strange unto any, that the believer in such case is allowed to depart. For a husband that is a Christian is married two ways: First with Christ, and secondly with his wife. The former marriage is made in baptism, and is a more holy conjunction, then is the latter. Therefore when these two cannot stand together, but one of them must needs be dissolved; the latter must rather be left then the former. Again, if the believer should remain with the unbeliever, she should haply be urged sometimes, in case of danger upon infirmity, to deny Christ, & make shipwreck of faith and good conscience; which may in no sort be done of either party: and therefore separation is to be made rather in this society, then that the conjunction with Christ should not stand firm, and continue.

It is alleged, that if this be so, then the believing wife forsakes the unbelieving husband, which she may not do.

Answ. She forsakes him not finally, but leaves him for a time. Again, the desertion is not made by the person, which giveth place for the time, but by him in whom is the cause of the desertion; even as he is not to be termed a Schismatic, which separateth himself, but he in whom is the cause of the Schism.

Again, it is objected, that he which flieth leaves his calling; and every man must abide in his calling; according to the rule of the Apostle, 1. Cor. 7. 20.

Answ. There is a double calling; The general, standing in the worship of God; The particular, as the calling of marriage, or of single life. When these two callings cannot stand together, the latter must give place to the former, Luk. 14. 26. *If any man come to me, & hate not his father, and mother, and wife, and children, and brethren, and sisters; yea and his own life also, he cannot be my disciple.*

III. Case. When the husband is perpetually absent from the wife, what is to be done?

Answ. If he be absent either because he is in captivity, or upon malice, or fear, or any such like cause; the wife must rest in expectation of his return, till she hath notice of his death, either by sufficient testimony, or by apparent likelihoods. Now in the want of testimonies, and conjectures in this behalf, if the party forsaken cannot certainly determine, that the absence was made upon an evil mind; some have thought that it behoveth her to expect his coming again for the space of four years; others of five; some of seven, some of ten years; after which time, she is free, and may marry another man. And if the party do haply return again after some long space of time, who was probably thought to have been dead, the latter marriage undertaken upon necessary ignorance of such an event, may be dissolved; and it shall not be imputed to either party, considering it fell out not by their fault, but only by accident.

Now if the question be of wilful and affected absence, the same is to be determined concerning that, which hath been said before touching the point of Desertion.

10. Of the Communion of Married Folks

The communion of man & wife, is that duty, whereby they do mutually and willingly communicate, both their persons, & goods each to other, for their mutual help, necessity and comfort, Ephes. 5. 28. *So ought men to love their wives as their own bodies; he that loveth his wife, loveth himself.*

This duty consisteth principally in the performance of special benevolence one to another, & that not of courtesy, but of due debt, 1. Cor. 7. 3. *Let the husband give unto the wife due benevolence, and likewise also the wife unto the husband.*

Due benevolence must be showed with a singular and entire affection one towards another; and that three ways principally.

First, by the right and lawful use of their bodies, or of the marriage-bed, which is indeed an essential duty of marriage.

The marriage-bed signifieth that solitary and secret society, that is between man and wife alone.

And it is a thing of it own nature indifferent; neither good nor bad; and so *Paul* numbereth it amongst indifferent things, 1. Cor. 7. 27. *Art thou bound unto a wife? Seek not to be loosed: art thou loosed from a wife? Seek not a wife.* Wherefore the Church of Rome erreth two contrary ways. First, in that it maketh marriage to be a sacrament, and so every action of it, to be of the own nature good. Secondly, in that they prohibit marriage of certain parties, and the reason of the prohibition may seem to be this; that they think this secret coming together of man and wife to be

filthiness.⁵⁹ This was the sentence of *Syricius*, that filthy Pope of Rome; who determined that marriage was the uncleanness of the flesh, and to that purpose abused the words of the Apostle, Rom. 8. 8. Affirming, that they which are in the flesh, that is, in the estate of Matrimony, *cannot please God*. Yea and after that marriage was condemned by them, some began to detest and hate women,⁶⁰ as *Ephraim* the Syrian,⁶¹ of whom Ecclesiastical stories make mention. And the Council of Trent is of the same judgement. For whereas it opposeth marriage and chastity; it plainly determineth that in marriage there is no chastity.

This coming together of man and wife, although it be indifferent, yet by the holy usage thereof, it is made a holy and undefiled action, Hebr. 13. 4. *marriage is honorable among all, and the bed undefiled*. And it is (as all other creatures and ordinances of God are) sanctified by the word & prayer, 1. Tim. 4. 3.—*Forbidding to marry, &c.* V. 4.—*And nothing ought to be refused:—for it is sanctified by the word of God, & prayer*. In which place it is to be observed, how the Apostle applieth the point of sanctification directly to marriage.

The word of God giveth direction to married folks two ways. First, by giving them warrant, that they may lawfully do this action; because whatsoever is not done of faith (which faith must be grounded on Gods word) is a sin. Secondly, by prescribing the right and holy manner of doing the same.

The holy manner stands in these particulars.

First, that it be done in moderation. For even in wedlock excess in lusts is no better then plain adultery before God.⁶² This

⁵⁹Canon. Proposuiti, Distinct. 82.

⁶⁰Sozomen. lib. 3. cap. 16.

⁶¹Sess. 8. Canon. 9. 10.

⁶²Ambros. lib. de Philosoph. citat. ab August. contr. Iulianum. lib. 2.

is the judgement of the ancient Church, that Intemperance, that is, immoderate desire even between man and wife, is fornication.

Secondly, that it be used in an holy abstinence.

Abstinence from this secret society, must be used in two cases.

First, while the woman is in her flowers, Levit. 18. 19. *Thou shalt not go to a woman to uncover her shame, as long as she is put apart for her disease.* And it is made one of the properties of a good man, not to lie with a menstruous woman, Ezek. 18. 6.

Secondly, in the time of a solemn fast, when some grievous calamity is imminent. Then they are to give themselves (by mutual consent) to fasting and prayer, 1. Cor. 7. 5. Defraud not one another, except it be with consent for a time, that you may give your selves to fasting and prayer: and again come together, that Satan tempt you not for your incontinency. 2. Sam. 11. 11. Then Uriah answered David, The Ark, and Israel, and Judah dwell intents: and my Lord Joab, and the servants of my Lord abide in the open fields: shall I then go into mine house to eat and drink, and lie with my wife? By thy life, and by the life of thy soul, I will not do this thing. Zach. 12. 12. The family of the house of David shall mourn apart, and their wives apart; the family of the house of Nathan apart, and their wives apart, &c.

Next unto the word, this action may be sanctified by prayer, for a blessing upon it. Children are the gift of God, and therefore married folks are not only to use the means, but also to pray for the obtaining of them, Psal. 113. 9. He maketh the barren woman to dwell with a family, and to be a joyful mother of children. Psal. 127. 3. Behold children are the inheritance of the Lord, and the fruit of the womb his reward. Examples for this purpose are these, Gen. 25. 21. Isaac prayed unto the Lord for his wife, because she was barren, and the Lord was entreated of him; and Rebekah his wife conceived. 1. Sam. 1. 26. 27. And she said, Oh my Lord, as thy soul liveth, my Lord, I am the woman that

stood with thee here, praying unto the Lord. *vers.* 27. I prayed for this child, and the Lord hath given me my desire, which I asked of him.

Now the fruits, which are reaped and enjoyed by this holy usage of the marriage bed, are three.

- I. *The having of a blessed seed. Deut. 28. 1. If thou shalt obey diligently the voice of the Lord thy God, &c. Blessed shall be the fruit of thy body, and the fruit of thy ground. Which also is called the seed of God, being begot in an holy manner, Mal. 2. 15. And did not he make one? Yet had he abundance of Spirit: And wherefore one? Because he sought a seed of God: therefore keep yourselves in your spirit, and let none trespass against the wife of his youth.*
- II. *The preservation of the body in cleanness, that it may be a fit Temple for the holy Ghost to dwell in, 1. Thess. 4. 3. 4. This is the will of God, even your sanctification, that every one of you should know how to possess his vessel in holiness and honor, and not in the lust of concupiscence, even as the Gentiles that know not God.*
- III. *The holy estate of marriage is a lively type of Christ and his Church, and this communion of married persons, is also a figure of the conjunction that is between him, and the faithful, Hos. 2. 19. I will marry thee unto me, for ever; yea I will marry thee unto me in righteousness, in judgement, in mercy and in compassion: I will even marry thee unto me in faithfulness, and thou shalt know the Lord. Ephes. 5. 23. For the husband is the wives head, even as Christ is the head of the Church, and the same is the Saviour of his body.*

Here some questions are to be resolved.

Case. I. Whether may marriage be dissolved in the case of barrenness?

Ans. No. For barrenness is an hidden infirmity for the most part, and which God hath many times cured, even when it seemed to be desperate, as in *Sarah*. Again, the fruit of the womb is Gods blessing; and wholly dependeth upon him. He therefore that in want of children, rejecteth his wife, whom he hath received at the hands of God, offereth wrong even to God himself.

Case II. What if either of the married folks commit fornication, or any sin of the same kind greater then fornication, as Incest, Sodomy, lying with beasts, or such like.

Ans. Adultery and fornication are most grievous and open crimes, which do break the very bond and covenant of marriage, Prov. 2. 17. And therefore when they are certainly known by such persons, they are at no hand to be winked at, but the Magistrate is presently to be informed of them. Howbeit, if the innocent party be willing to receive the adulterer again, in regard of his repentance; lest he should seem to favour and maintain sin, and to be himself a practiser of uncleanness, he is to repair to the Congregation, and declare the whole matter to the Minister, that he may understand the parties repentance, and desire of forgiveness.

And if the adulteress hath conceived, and is in travel, the husband to avoid the imputation of having an heir in bastardy, is to make relation to the Church of the repentance of the adulteress; or to acquaint some certain persons therewith, not to the end that she should be punished for the fact, but that they may take notice of a child conceived in adultery, whom afterward he may lawfully put off, as none of his.

The matter being known, the innocent party may require a divorcement. For adultery is such a sin, as doth quite break off not only the use, but the bond and covenant of marriage, Matth. 19. 9. *I say therefore unto you, that whosoever shall put away his wife, except it be for whoredom, and marry another, commiteth*

adultery, &c. And yet the same bond may be continued, and grow up again by the good will and consent of the party innocent, and consequently they may be reconciled, and dwell together still. 1. Sam. 25. 44. *Now Saul had given Michal his daughter Davids wife, to Phalti the son of Laish, which was of Gallim.* 2. Sam. 3. 14. *Then David sent messengers to Ishbosheth Sauls son, saying, Deliver me my wife Michal, which I married for an hundred foreskins of the Philistines.* The same course may be taken in like cases by the innocent, specially upon the repentance of the guilty person. But yet every man must be left to his own conscience, and none is to be compelled to take another, from whom he may justly be separated against his will.

Now in requiring of a divorce, there is an equal right and power in both parties, so as the woman may require it as well as the man; and he as well as she. The reason is, because they are equally bound each to other, and have also the same interest in one anothers body; provided always, that the man is to maintain his superiority, and the woman to observe that modesty which beseemeth her towards the man.

After the divorcement made, it shall be lawful for the harmless party, not having the gift of continency, upon leave obtained of the Church, and the Christian Magistrate, to marry again.

But what then shall become of the party offending?

Answ. If upon the hazard of his Conscience in want of the remedy, any liberty of second marriage, be to be granted unto him by the Church or Civil Magistrate; (as indeed here in England there is not;) divers restraints, in this case, must be observed.

First, no such liberty is to be granted, so long as the matter remains uncertain, whether they may be reconciled, specially while the party innocent liveth in single life. Secondly, it must evidently appear, that the said offending party hath earnestly

repented him of his sin, before he can either be received into the Church, or admitted to a second marriage. Thirdly, this liberty is not to be granted him either presently, or unadvisedly; but upon frequent and serious admonition, rather to give himself to mourning and lamentation, and still to remain alone, then to desire again to enjoy the benefit of that state, which he hath already so shamefully abused.

So much of the first way of performance of due benevolence.

The second way is, by cherishing one another: Ephes. 5. 29. *No man ever hated his own flesh, but nourisheth and cherisheth it, as Christ also doth the Church.* This cherishing is the performing of any duties, that tend to the preserving of the lives one of another. Wherefore they are freely to communicate their goods, their counsel, their labors each to other; for the good of themselves and theirs.

The third way is, by an holy kind of rejoicing and solacing themselves each with other, in a mutual declaration of the signs and tokens of love and kindness. Prov. 5. 18. Rejoice with the wife of thy youth: vers. 19. Let her be as the loving Hind, and pleasant wild goat: let her breasts satisfy thee at all times, and delight in her love continually. *Cantic.* 1. 1. Let him kiss me with the kisses of his mouth, for thy love is better than wine. *Gen.* 26. 8. So after he had been there a long time, *Abimelech* King of the Philistines, looked out at a window, and lo, he saw *Isaac* sporting with *Rebekah* his wife: Then *Abimelech* called *Isaac* and said; Lo, she is of a surety thy wife. *Esay* 62. 7. As a young man marieth a virgin, so shall thy sons marry thee; and as a Bridegroom is glad of the bride, so shall thy God rejoice over thee.

This rejoicing and delight is more permitted to the man, then to the woman; and to them both, more in their young years, then in their old age.

11. Of the Husband

Married folks are either husband or wife.

The husband is he which hath authority over the wife; here-upon in Scripture he is called the *guide of her youth*, Prov. 2. 17. And they twain being but one flesh, he is also the head over his wife.

The duties of the husband towards the wife, are these:

I. To love her as himself: Eph. 5. 33. Let every one love his wife even as himself. *Gen. 24. 67.* Afterward *Isaac* brought her unto the tent of *Sarah* his mother; and he took *Rebekah* and she was his wife, and he loved her: so *Isaac* left mourning for his mother. *Note, how the love of the husband to the wife, mitigates sorrow for the death of the mother.*

He is to show this love in two things: First in protecting her from danger, Gen. 20. 16. And unto *Sarah* he said, behold I have given 1000. Shekels of silver unto thy brother: behold he is the covering of thine eyes amongst all that are with thee. Let it be known amongst all, & be thou instructed. 1. *Sam. 30. 5.* *Davids* two wives were taken prisoners also, *Ahinoam* the *Izreelite*, and *Abigail* the wife of *Nabal* the *Carmelite*: v. 8. Then *David* asked counsel of the Lord saying; Shall I follow after this company,? Shall I overtake them? And he answered him, Follow, for thou shalt surely overtake them, and recover all. *Secondly, in regarding her estate as his own, and providing maintenance for her, both for his life time, and as much as he may, for time to come after his death. Ephes. 5. 28.* So ought men to love their wives, as their own bodies: he that loveth his wife loveth himself; *vers. 29.* For no man yet hated his own flesh, but nourisheth it, &c.

Exod. 21. 10. If he take him another wife, he shall not diminish her food, her raiment, and recompense of her virginity. *Ruth.* 3. 9. Unto whom he said, who art thou? Which said; I am *Ruth* thine handmaid, spread therefore the wing of thy garment over thine handmaid; for thou art the kinsman.

II. To honor his wife: 1. Pet. 3. 7. *Giving honor to the woman.*

This honor stands in three things: First, in making account of her, as his companion, or yoke-fellow. For this cause, the woman, when she was created, was not taken out of the mans head, because she was not made to rule over him; nor out of his feet, because God did not make her subject to him as a servant; but out of his side, to the end that man should take her as his mate. Secondly, in a wise & patient bearing or covering of her infirmities, as anger, waywardness and such like, in respect of the weakness of her sex, 1. Pet. 3. 7. *Giving honor to the woman, as unto the weaker vessel, seeing ye are heirs together of the grace of life, that your prayers be not hindered.* Thirdly, by suffering himself sometimes to be admonished or advised by her. It was Gods commandment to *Abraham* concerning *Sarah* his wife; *Let it not be grievous in thy sight for the child, and for thy bond-woman: in all that Sarah shall say unto thee, hear her voice; For in Isaac shall thy seed be called,* Gen. 21. 12. Thus *Elkanah* was willing to subscribe unto his wife *Anna's* advice, for her tarrying at home till the child was weaned, 1. Sam. 1. 23. *And Elkanah her husband said unto her, do what seemeth thee best: tarry until thou hast weaned him: only the Lord accomplish his word.* Hereupon the Heathen Philosopher said,⁶³ *That the master of the family exerciseth (after a sort) a power Tyrannical over his servants, a power Regal over his children; because Kings are fathers of their common-weals: but in respect of his wife, he exerciseth a power Aristocratic, not*

⁶³Arist. Ethic. lib. 8.

after his own will, but agreeable to the honor and dignity of the married estate; and consequently, that he ought not in modesty to challenge the privilege of prescribing and advertising his wife in all matters domestic, but in some to leave her, to her own will and judgement.

Here question is moved, whether the husband may correct the wife?

Answ. Though the husband be the wives head, yet it seemeth he hath no power nor liberty granted him in this regard. For we read not in the Scriptures, any precept or example to warrant such practise of his authority. He may reprove & admonish her in word only, if he seeth her in fault. For, thus we read, that *Jacob* censured his wife, being impatient, even in anger, Gen. 30. 2. *Am I in Gods stead, which hath withholden from thee, the fruit of the womb?* And *Job* reprov'd his wife, Job 2. 10. *Thou speakest like a foolish woman. What? Shall we receive good at the hand of God, and not receive evil?* But he may not chastise her either with stripes, or strokes. The reason is plain; wives are their husbands mates; and they two be one flesh. And no man will hate, much less beat his own flesh, but nourisheth and cherisheth it, Ephes. 5. 29. Again, it is the commandment of God, that man should not *trespass against the wife of his youth*, Malac. 2. 15. *Chrysostom* saith,⁶⁴ *It is the greatest reproach for any man, that can be, to beat his wife.* *Plutarch* in the life of *Cato* the Censor, affirmeth, that *he which smiteth his wife*, doth all one, *as if he should lay violent hands upon the sacred images of the gods*, which was counted an high degree of offence among the Heathen.

It is alleged, husbands are commanded so to love their wives, as Christ doth his Church; now Christ chastiseth his Church, with strokes; & therefore so may the husband his wife. *Answ.*

⁶⁴In 1. Cor. 11. Homil. 26.

As Christ doth entirely love his Church, so he may also chastise the same, because he is not only the husband, but also absolute Lord and King of his Church: so is not the husband absolute over the wife.

But his authority over the wife, is after a sort civil, as is the authority of the Magistrate over his people. *Ans.* It is not so. For the Magistrate hath in his hand the power of the sword, by which power he inflicteth punishment in case of offence. But the husband can challenge to himself no such power:⁶⁵ yea it is flatly forbidden in the Civil law, that he should scourge or strike his wife.

Nevertheless, if she grow to extremities, and be desperately perverse, so as there be no hope of amendment; then the Magistrate may be informed, who to prevent scandals, and to provide for public peace, both ought and may assign unto her necessary correction, and punishment according to her desert. Now the husband that hath a wife so stubborn and peevish, must bear it, if it may be borne, as the portion of his cross laid upon him by God. And in this case, if he be impatient, he may in some sort be pardoned and pitied, but he is not wholly to be excused.

⁶⁵L. Consensu. C. de diuortijs.

12. Of the Wife

The wife is the other married person, who being subject to her husband, yieldeth obedience unto him.

Touching the subjection of the wife, the word of God mentioneth it in sundry places. Rom. 7. 2. *The woman which is in subjection to the man, is bound by the law to the man, while he liveth.* Ephes. 5. 24. *As the Church is in subjection to Christ, even so let the wives be to their husbands in every thing.* Colos. 3. 18. *wives submit your selves unto your husbands, as it is comely in the Lord.* 1. Tim. 2. 12. *I permit not a woman—to usurp authority over the man.* And it was a law established by God immediately after the fall, Gen. 3. 16. *Unto the woman he said, I will greatly increase, &c. and thy desire shall be subject to thine husband, and he shall rule over thee.* Indeed the daughter, according to the Civil law, even when she is married is⁶⁶ *in the power of her father*, and not of her husband. But this is directly against the law of *Moses*, and crosseth the law of nature, Levit. 22. 12. 13. Numb. 30. 13.

Now the duties of the wife, are principally two.

The first is, to submit her self to her husband; and to acknowledge and reverence him as her head in all things. Gen. 20. 16. *Likewise Abimelech said unto Sarah; Behold thy brother*, that is, thy husband, whom thou callest thy brother, *is the veil of thine eyes to all that are with thee.* As if he should say, *Thy husband is thy head, and hath power over thee, and thou oughtest to reverence him.* For of ancient times, the wife was covered with

⁶⁶In potestate patris.

a veil in the presence of her husband, in token of subjection to him. Thus *Rebekah* at the sight of *Isaac* took a veil, *and covered her head therewith*, Gen. 24. 65. 1. Cor. 11. 3. *The man is the womans head*. Ephes. 5. 22. *wives submit your selves unto your husbands, as unto the Lord; for the husband is the wives head, even as Christ is the head of his Church*. The reason hereof is good. For the wife enjoyeth the privileges of her husband, and is graced by his honor and estimation amongst men. His Nobility maketh her noble, though otherwise she is base and mean; as contrariwise, his baseness and low degree, causeth her, though she be by birth noble and honorable, to be by estate base and mean.

The second duty is, to be obedient unto her husband in all things; that is, wholly to depend upon him, both in judgement and will. For look as the Church yields obedience to Christ her head, and yields her self to be commanded, governed, and directed by him, so ought the woman to the man. So *Sarah* is said *to obey Abraham*, and to give him the terms of obedience, *She called him Lord, or Sir*, 1. Pet. 3. 6. Hence it followeth, that the woman is not to take liberty of wandering, and straying abroad from her own house, without the mans knowledge & consent. 2. King. 4. 22. *Then she called to her husband and said, Send with me, I pray thee, one of the young men, and one of the asses; for I will haste to the man of God, and come again*. Again, that she is to follow her husband, when he flitteth or departeth from place to place, unless he forsake either her or Christ. To this purpose *Paul* saith *he had power to lead about a wife, being a sister, as well as the rest of the Apostles*, 1. Cor. 9. 5. Thus *Sarah* went with *Abraham* into Egypt, Gen. 12. 11. And out of Egypt, Gen. 13. 1. And to *Gerar* to sojourn there, Gen. 20. 1. 2. 3. Thus the wives of *Jacob* departed with him, from their father *Laban*, Gen. 31. 17.

Contrary to these duties, are the sins of wives; To be proud, to be unwilling to bear the authority of their husbands; to chide and brawl with bitterns; to forsake their houses, &c. Prov. 27. 15. A continual dropping in the day of rain, and a contentious woman are alike. vers. 16. He that hideth her, hideth the wind, & she is as the oil in his right hand, that uttereth it self. Exod. 4. 26. Then Zipporah said, O bloody husband; because of the Circumcision. It was the fault of the Levites concubine, Judg. 19. 2. Who played the whore, and went away from him unto her fathers house to Bethlehem Judah, and there continued the space of four months. It was the sin of Queen Vashi, who refused to come at the Kings word, which he had given in charge to the Eunuchs: therefore the King was very angry, and his wrath kindled in him, Esther 1. 12. Lastly, to be a cause of grief to their kindred. Thus the proud wives of Esau, the daughters of the Hittites, were a grief of mind to Isaac and Rebekah, Gen. 26. 35. & 27. 46.

13. Of the Parent

Hitherto hath been treated of the first Couple, whereof the family consisteth, namely, of married folks. Now follow the other; and they are of two sorts; either such as, whereby the family is increased, and multiplied; or such as are helps thereunto.

Those whereby the family is enlarged, are also of two sorts; parents and children.

Parents are they which have power and authority over children.

The duties of parents are especially two; One to bring up their children; The other to bestow them, when they have brought them up.

Touching education or bringing up of children, the parents care must be, both that they may live, and also that they may live well, Ephes. 6. 4.

Touching the preservation of the life of the child, there are many duties required of the parents, specially four. First, the mother is her self to give the infant suck, and to wrap it up in swaddling clothes. *Paul* commends it for a note of a good wife, *to nurse her own children*, 1. Tim. 5. 10. Thus *Sarah* gave suck to *Isaac*, Gen. 21. 7. *Anna* nursed *Samuel*, 1. Sam. 1. 22. *David* in likelihood was nursed by his mother, Psal. 22. 9. *Thou gavest me hope even at my mothers breasts*. And our Saviour Christ was also nursed by *Mary* his mother, Luk. 11. 27. And swaddled, Luk. 2. 7. Now the reason hereof is plain. God hath given milk to women that bear children, & hath so appointed, that no meat is more natural to the child, then the mothers milk. And nature

it self teacheth this in the course of other creatures. The earth nourisheth that which it bringeth forth. The fruit which the tree beareth is fed by the sap that comes from the root thereof. Yea amongst the bruit beasts, even those that be most savage, as the Tigers, do give suck unto the young ones which they bring forth.

Yet in case of want of health, or ability, or any other just impediment, the mother may in equity be forborne, and the child committed unto a nurse. And so we read that *Rebekah* the daughter of *Bethuel*, and afterward the wife of *Isaac* had a nurse, Genes. 24. 59. Whose name was *Deborah*, Gen. 35. 8. And *Pharaohs* daughter in a case of necessity, committed *Moses* to be nursed of an Hebrew woman, whom she took not to be his mother, but a stranger; and her fact was allowed by God, Exod. 2. 7. 9.

The second duty of the parent is, to provide for his child meat, drink, and clothing. Our Saviour Christ saith, that parents even by the light of nature, though they be evil, will not deny or withhold necessary food from their children: Mat. 7. 9. 10. *What man is there among you, that if his son ask him bread, will give him a stone, or if he ask a fish, will give him a scorpion? And Paul saith, If there be any that provideth not for his own, and namely for them of his household, he denieth the faith, and is worse then an Infidel*, 1. Tim. 5. 8.

The third duty is, when God giveth ability & means, to lay up some thing for the future maintenance of the child. 2. Cor. 12. 14.—*for the children ought not to lay up for the fathers, but the fathers for the children*. Prov. 19. 14. *House and riches are the inheritance of the fathers*.

The fourth is, to observe both the inclination, and the natural gifts of body and mind that are in the child, and accordingly to bestow it in some honest calling & course of life. Prov. 20. 11. *A child is known by his actions, whether his work be pure and*

right. In the Ecclesiastical history,⁶⁷ written by *Ruffinus*, it is recorded, that *Alexander* Bishop of *Alexandria*, saw a far off, in a place near to the sea, a company of children playing together, and in their play imitating himself in sundry Ministerial actions. And when he had a while viewed them, he perceived that they examined & baptised one another, according to the solemn order used in the Congregation: which thing, when he had made some of his Clergy acquainted withal, and taken order that the children should be sent for, and brought before him, he demanded of them, what sport they used, and in what manner they played one with another. The children at first, for fear, denied what they had done, yet upon further examination they confessed, that they had made *Athanasius* (who afterward became Bishop of the place) their Bishop, and that he instructed and baptised sundry of their company. He further asked both *Athanasius* himself, and those which were said to have been baptised, what questions he asked them, and what answers they gave; and perceiving by their speeches, that they had framed themselves, though in sporting manner, to the Church-proceedings in those actions; upon conference had with his Clergy, he determined, that those which had first been asked, and had given answer fully, according to the form used in that Church, and thereupon baptised, should not be rebaptised. And for *Athanasius* and the other children, which had done the part of Ministers in their kind, he sent for their parents, and gave them great charge that they should be brought up in learning and religion, that so they might in time be fit for the public Ministry. The like course we read to have been taken by the Heathen, for judgement of the inclination and towardness of their children.⁶⁸ The Athenians made a law, that before children were bestowed in any calling, they should be first brought into a

⁶⁷Ruffin. Eccles. hist. lib. 1. c. 14.

⁶⁸Nazianz. epist. ad Eudoxam.

public place, where Instruments belonging to all sorts of trades were laid; and look in what kind of Instrument any of them took most delight, the child was thought to be most fit for the trade, whereunto that Instrument belonged, and afterward applied to the same with good success.

Now the parents first and principal care must be for the Church; that those of their children which have the most pregnant wit, and be indued with the best gifts, be consecrated unto God, and brought up in the study of the Scriptures, to serve afterward in the Ministry of the Church. Thus *Anna* dedicated *Samuel* her son unto God by vow, 1. Sam. 1. 11. *And she vowed a vow, and said, O Lord of Hosts, if thou wilt—give unto thine handmaid a man-child, then I will give him unto the Lord all the days of his life.* And she did according to her vow, and the Lord blessed *Samuel* her son, who in process of time became a great Prophet.

The next point of education of children, is to provide that they may live well, and lead a godly life. To this purpose parents must do three things.

First, they are to be careful, that the child, so soon as may be, after it is borne, be admitted into the true Church of God by baptism, and have a fit name given unto it.

Secondly, they are to endeavour to sow the seeds of godliness and religion in the heart of the child, so soon as it comes to the use of reason and understanding; and as it grows in years, so care must be had that it grow in knowledge and grace. To this purpose is the vow and promise made in baptism, which parents are bound to call upon the child to remember, when it comes to years. It was the godly care of Timothies parents, 2. Tim. 3. 14. But continue thou in the things which thou hast learned, knowing of whom thou hast learned them, vers. 15. And that thou hast known the holy Scriptures of a child, which are able

to make thee wise unto salvation, through the faith which is in Christ Jesus. *This was the commandment of God to the parents of his people, Deut. 6. 7.* Thou shalt rehearse these words which I command thee continually to thy children, and shalt talk of them when thou tarriest in the house. *And vers. 20.* When thy son shall ask thee in time to come, saying; What mean these Testimonies, and Ordinances, and Laws, which the Lord our God hath commanded you? Then thou shalt say unto thy son; We were Pharaohs bondmen in Egypt, &c. *This was observed by the Israelites in the ages succeeding: Psal. 44. 1.* We have heard with our ears, O God: our fathers have told us the works that thou hast done in their days in old time.

Thirdly, the first instruction of children in learning & religion, must be so ordered, that they may take it with delight. For which purpose, they may be sometimes allowed in moderate manner to play, and solace themselves in recreations fitting for their years. And if they do amiss in either, they are to be restrained by the bridle of discipline. First by reproof in word, and when that will not help, by the rod of correction. *Zach. 8. 5. The streets of the city shall be full of boys and girls, playing in the streets thereof. Prov. 29. 15. The rod and correction give wisdom, but a child set at liberty makes his mother ashamed. vers. 17. Correct thy son, and he will give thee rest, and give pleasures to thy soul. Hebr. 12. 9. We have had the fathers of our bodies which correct us, and we gave them reverence.*

Yet in this point, two extremes are carefully to be avoided; That the parent be not either too severe, or too indulgent to the child. For severity *Paul* gives his rule, *Ephes. 6. 3. parents provoke not your children to anger*, that is, by too much austerity in government. For lenity, we have old *Eli* his example, *1. Sam. 2. 23. And he said unto them, Why do ye such things? For of all*

this people, I hear evil reports of you. Do no more my sons, &c.
So much for education.

The second general duty of parents, is the bestowing of their children; This bestowing is, when they knowing their children fit for marriage, not to have the gift of continency, do use their best endeavour to provide matches for them in time, or at least, do advise them thereunto by themselves or by their friends: 1. Cor. 7. 36. If any man think it uncomely for his virgin to pass the flower of her age, and need so require—let them be married. vers. 38. He that giveth her to marriage, doth well. Jerem. 26. 6. Take ye wives—and take wives for your sons, and give your daughters to husbands, &c. Gen. 28. 1. Isaac called Jacob and blessed him, and charged him and said unto him; Take not a wife of the daughters of Canaan: Arise, get thee to Padan Aram—and thence take thee a wife of the daughters of Laban thy mothers brother. Judg. 14. 2. Samson came and told his father and his mother, and said, I have seen a woman in Timnah of the daughters of the Philistines; now therefore give me her to wife.

This duty is now adays carelessly neglected of parents; and the fruit thereof is dangerous. For hence it comes to pass, that their children oftentimes do either commit whoredom, or undertake wicked and ungodly marriages.

In the choice of a husband or wife, the parents ought to have a greater respect unto piety and wisdom, then unto beauty and riches, or any other outward blessings. Yet where they all concur, the party so qualified is the more thankfully to be entertained. Upon these grounds the Priest of Prince of Midian, gave his daughter *Zipporah* to *Moses*, and *Moses* agreed to take her, *Exod. 2. 19. A man of Egypt delivered us from the Philistines, and also drew us water enough, & watered the sheep—And Moses agreed to dwell with the man, who gave unto Moses Zipporah his daughter. Josu. 15. 16. Then Caleb said, He that*

smiteth Kiriath-sepher, and taketh it, even to him will I give Achsah my daughter to wife. Yea it is a sin to marry only for beauty, without consideration of the better things. Thus the old world sinned, when *the sons of God saw the daughters of men that they were fair, and took them wives of all that they liked,* Gen. 6. 2. And *Samson*, who only upon the sight of the woman in Timnah, of the daughters of the Philistines, without further inquiry, desired that she might be given him for his wife, Judg. 14. 2.

Again, it is meet that parents should deal moderately with their children in this case, and not undertake at any hand to force and compel them to marry this or that party. This was the just commendation of *Rebekahs* parents, who though they were Idolaters, yet had that regard of equity, that they first called her and asked her consent, before they sent her away with *Abrahams* servant, to be married to *Isaac*, Gen. 24. 58. Now in case the parents fail in their duty in this regard, the son or daughter may lawfully declare the matter first to their kinsfolk, and afterward (if need be) to the Minister, or Magistrate, and sue for redress by their means and direction.

14. Of the Son

The son is he, who is in subjection to his parents.

The duties of a son to be performed to his parents, are principally two.

First to yield them obedience, whether they be his natural parents or otherwise, as his step-father & step-mother, and that while he liveth. *Eph.* 6. 1. Children obey your parents in the Lord; for this is right. *Luke* 2. 51. Then he went down with them, and came to Nazareth, and was subject to them. *Exod.* 18. 19. Moses *father in law said unto him*, Hear now my voice, I will give thee counsel, and God shall be with thee. *Ruth* 3. 5. And Ruth said unto Naomi her mother in law, All that thou biddest me, I will do. *Job* 1. 5. And when the days of their banquetting were gone about, Job sent and sanctified them.

This obedience must show it self in two things.

First in the choice of a lawful calling, wherein the child is to be ordered and appointed at the discretion of the parent.

Secondly in marriage: For in that, the parent is the principal agent and disposer of the child. Now although his authority be not so great, as that the child is to be forced and compelled by him; yet the reverent and dutiful respect which the child ought to bear towards him, ought to be a strong inducement, not to dissent, or renounce his advice, without great and weighty cause. Yea the child must endeavour by all manner of dutiful carriage to overcome, or at least to mitigate his parents severity in that behalf.

Now for the daughters: They must yield obedience to their parents in all Domestic labours, that they may be skilful in

household affairs. Thus did the seven daughters of the Priest of Midian, accustom themselves to draw water, and fill the troughs to *water their fathers sheep*, Exod. 2. 16. Thus *Rebekah* was seen to come out of her fathers house, with her pitcher upon her shoulder, and to go down with it to the well to fill it, and *give drink to her fathers Camels*, Gen. 24. 16. 17.

The second duty of the son, is to recompense his fathers love, and care over him, by relieving him in case of want, if God give ability, with food and raiment, and other necessities. Herein children must deal with their parents, as the brood of the Stork is reported to do with her, by feeding her when she is old; wherein they do no more but what she before hath done unto them. It is *Pauls* counsel, that children & nephews should recompense the kindness of their kindred in the first place, 1. Tim. 5. 4. And therefore to their parents, the head & foundation of their kindred. When *Joseph* was in prosperity, and his father *Jacob* in want, he first gave him corn freely; and afterwards sent for him to Egypt, and there provided for him; in so much as the text saith of him, that he nourished his father and his brethren, and all his fathers house-hold with bread, *Even as the mother puts meat into the childs mouth*, Gen. 47. 12. When *Naomi* the step-mother of *Ruth* was of great years, and her strength spent, *Ruth* gathered corn in the harvest for relief of them both. Yea when *Boaz* gave her to eat and to drink, she reserved part of her victuals, & brought it home with her gleanings to refresh her mother, Ruth 2. 14. 18.

The necessity of the performance of these duties is so great, that if the son neglecteth them, and doth the contrary, by ill usage of his parent, either in word or deed, he is worthy of death, even by *Moses* law: Exod. 21. 15. *He that smiteth his father or his mother, shall die the death.*

The law of the first borne of a mans children, that he should have a greater portion of his fathers goods, then any of the

rest of his brethren, is perpetual, and admits no exception, but only in the case of notorious wickedness. Deut. 21. 17. *He shall acknowledge the son of the hated for the first borne, & give him a double portion of all that he hath, for he is the first of his strength, and to him belongeth the right of the first borne.* This was the law; yet we read that *Ruben* lost this prerogative, by reason of his incest, and *Judah* the fourth son of *Jacob* had the dignity of the first borne, Gen. 49. 8. *Thou Judah, thy brethren shall pray thee—thy fathers sons shall bow down unto thee.*

In the Church of the old Testament, the privilege of the first borne was three-fold; the first of government and royalty, the second of Priesthood, the third of the double portion. And it is probable that this was for the most part Ceremonial, and was accomplished and determined in Christ, who was *the image of the invisible God, & the first borne of every creature*, Colos. 1. 15.

Here two questions are propounded.

Quest. I. Whether is it lawful for the son to make a vow belonging either to religion, or to civil conversation, without the consent of the parent?

Ans. A vow so made is not of force to bind the child, but by the Law of nature & common equity, is to be made void. For it is a ruled case, that he which is not his own man, that is to say, at his own liberty, but under the power of another, cannot bind himself. Again, the authority of the parent by the law of God is great; For it alloweth the father to make void the vow of the child pertaining to Gods worship, Numb. 30. 6.

Quest. II. Whether is the consent of the parents to be required in the second marriages of their children?

Ans. 1. Of ancient times, both by⁶⁹ Civil laws, & also by Imperial constitutions, it was provided that no widows, though

⁶⁹C. de Nuptijs. L. vidua, & L. in coniunctione.

made free by their former marriages, should make any contract again, without the good will of their parents. 2. Consent in this case, though it be not *absolutely necessary*, yet it is to be thought *fit and convenient*, because children in some regards exempted from parents authority, do owe notwithstanding the duty of honor unto them, by Gods express commandment, Exod. 20. 12. And consequently ought to testify the same, by being ordered and advised by them in some sort, even at the after-bestowing of themselves. Hence it is, that⁷⁰ later Divines have holden upon good ground; That the espousals of widows, who have some more liberty, then the child first married, being made without their parents knowledge, cannot but incur just reprehension, howsoever they may stand in force without it.

⁷⁰Beza de repud. & diuort. sect. de sponsalibus absque consensu parentum factis.

15. Of the Master

Next unto parents and children, whereby the family is increased, is a second sort of couples, which are helps thereunto. And they are masters and servants.

The master is a member in the family, which hath power and beareth rule over the servant. And his duty stands principally in three things.

First, To make a good choice of his servants; which is then done, when he inquireth first after such as fear God, and be willing to serve him. *Paul* makes the service and fear of God the main ground of true obedience in servants, Ephes. 6. 5. 6. 7. Colos. 3. 22. It was the rule of *Dauids* choice, Psal. 101. 6. *He that walketh in the perfect way, he shall serve me.* *Abrahams* chief servant of his house, was a man that feared God, as appeareth, in that he made conscience of his oath, Gen. 24. 2. 3. And prayed also for success in the business whereabout he was sent. Gen. 24. 12. *O Lord God of my master Abraham, I beseech thee send me good speed this day, and show mercy to my master Abraham.* *Cornelius* of *Caesarea*, the Captain of the Italian band, had a soldier that daily attended on him, *who feared God*, and servants also beside him, to whom he made known the heavenly vision which he saw, Act. 10. 7.

Secondly, To enjoin them labour, and not to require more of them, then their strength will bear. The master is to rule over the servant *in justice*. And then is his commandment unjust, when it will not stand with the course of nature, with the ability of his servant, or with the word of God. Therefore he is to require labour at their hands proportionable to their strength, & yield

them sometimes intercession & rest. *Levit. 25. 46. Over your brethren the children of Israel, ye shall not rule over one another with cruelty. 1. Pet. 3. 8. Be pitiful, be courteous, one bear with another.* And for the furtherance of business, it is convenient that the master be oftentimes present with the servants in their works. *Prov. 27. 23. Be diligent to know the state of thy flock, and take heed to thy herds.* The good matron *overseeth the ways of her household, Prov. 31. 27.*⁷¹ A man of Libya being asked, what it was that might make a horse fat; he answered, *The masters eye.*

Thirdly, To recompense the diligence and pains of his servant, and that three ways.

First, by giving him his due of meat and drink for the present. The good matron *giveth the portion to her household, and the ordinary to her maids, Prov. 31. 15.*

Secondly, by paying him his hire in the end of his service: The labourer is worthy of his wages. *Luk. 10. 7. Well done, good servant and faithful; thou hast been faithful in little, I will make thee ruler over much; enter into thy masters joy. Mat. 25. 21.*

Here three caveats are to be observed. I. That the wages be proportionable to the work. II. That it be paid in due time, without deferring. So the master of the vine-yard, when even was come, called his servants together, to give them their hire, Mat. 20. 8. III. That the servant be not defrauded of any part of his due. For this is a crying sin; Deut. 24. 15. Thou shalt give him his hire for his day, neither shall the Sun go down upon it—lest he cry against thee unto the Lord, and it be sin unto thee. Jam. 5. 4. Behold, the hire of the labourers which have reaped your fields, which is kept back by fraud, crieth, and the cries of them which have reaped, are entered into the ears of the Lord of hosts.

Thirdly, if the servant in time of his service be sick, the masters care must be by all means possible to procure his recovery.

⁷¹Arist. Oeconom. 7.

Equity must be the rule in these cases; and masters are to *do to their servants that which is just and equal*. Col. 4. 1. Now the servant haply falls sick by and in his service, and his health yields not only profit to his master, but encouragement also to himself. The good Centurion in case of his servants sickness, took the best course to have him restored, Matth. 8. 6.

16. Of the Servant

The servant, is a person in the family subject unto his master.

The duty of a servant is, faithfully and diligently to demean himself in the affairs of his master, and to do service unto him as unto Christ, though he be froward and hard-hearted. Titus 2.

9. Let servants be subject to their masters, and please them in all things, not answering again. *Ephes. 6. 5.* Servants, be obedient to them that are your masters according to the flesh, with fear & trembling, in singleness of your hearts, as unto Christ. *Col. 3. 22.* Thus Jacob served Laban, *Gen. 31. 38.* This twenty years have I been with thee; thine ewes and thy goats have not cast their young, and the rams of the flock have I not eaten, &c.

Contrariwise, the servant must take heed that he do not his masters business negligently, or for fashion sake, or with eye-service as a man-pleaser; that in case of rebuke or controlment, he answer not again; lastly, that he be trusty & withhold his hands from picking, and his heart from deceiving his master.

Servants are of two sorts; either free, or bond-servants.

A free-servant is he, whom his master hireth for wages to do him service. To him belongs the just payment of his hire, and in case of offence, them master hath authority to censure and correct him, provided that in the execution thereof, respect be had unto his age, and the correction be used with moderation, as if he were his son.

A bond-servant, is a servant bought for money, and is commonly called a slave. Touching this sort, a question is moved, whether a Christian may with safe conscience, have and use a man as his slave?

Answ. The power & right of having bond-men, in those countries where it is established by positive laws, may stand with good conscience, if it be used with moderation. That authority in this behalf is moderate, wherein these seven caveats be observed.

I. That the master have not over his servant the power of life and death; for this takes away the lawful power of the Magistrate, to whom only the Lord hath committed the sword of justice.

II. That there be not liberty granted him, to use his servant at his own will and pleasure in all things; for this was not granted by the law of God to his own people: *Exod. 21. 26. If a man smite his servant or his maid in the eye, and hath perished it, he shall let him go free for his eye: Also if he smite out his servants or his maids tooth, he shall let him go out free for his tooth.*

III. That the power be not enlarged to the commanding of things against piety or justice; for in these cases a man must rather obey God than man, *Act. 4. 19.*

IV. That masters do not take liberty to make separation of those their servants that be married, the one from the other, or of those that be parents from their children; considering that God himself hath made these societies, and joined such persons together, and therefore man may not separate them.

V. That the masters do not take liberty to put over their servants to ungodly and unbelieving masters, for that is an unkind and cruel liberty, & may be an apparent occasion to make the servant fall away from religion, and renounce the true God.

VI. *That they do not bind them to perpetual slavery, & never make them free. Exo. 21. 5.* But if the servant say thus, I love my master, my wife and my children, I will not go out free.

VII. That the servitude be not procured and retained by force; for it is a more grievous crime to spoil a man of his liberty, then of his riches.

Now that the same power limited with these cautions, is lawful & warrantable in conscience, it appears by these reasons.

I. God hath ordained & allowed it, even by warrant of his own law: The posterity of *Cham* was cursed by *Noah*, and condemned to slavery, Gen. 9. 25. *And he said, Cursed be Cham, a servant of servants shall he be to his brethren.* So were the Gibeonites by *Joshua*, Jos. 9. 23. *Now therefore ye are cursed, and there shall none of you be freed from being bond-men, and hewers of wood, & drawers of water, for the house of my God.* So was the thief, Exo. 22. 3. *If he had not wherewith to make restitution, then he should be sold for his theft.* Again, those that are overcome in war may be held captive, and it is lawful for the conqueror to kill them, & therefore to make them slaves: and if being taken, they be saved from death, they owe all that they have to them by whom they are saved.

II. *The law of God gave liberty to any man that would, to make sale of himself to another.* Levit. 25. 45. Of the children of the strangers that are sojourners among you, of them shall ye buy, & of their families that are with you, which they begat in your land, these shall be your possession. Deut. 15. 12. If thy brother an Hebrew sell himself to thee, or an Hebrewess, and serve thee six years, even in the seventh year thou shalt let him go free from thee: *and vers.* 17. Thou shalt take an awl, & pierce his ear through against the door, and he shall be thy servant for ever.

III. The man that is ransomed from his enemy, is bound to serve as a slave in lieu of thankfulness.

IV. *The examples of the godly in the Scriptures.* Abraham had servants whom he bought for silver, Gen. 17. 12. Every manchild of eight days old among you, shall be circumcised in your generations, as well he that is borne in thine house, as he that is bough with money of any stranger, which is not of thy seed. Gen. 24. 35. The Lord hath blessed my master Abraham wonderfully—

for he hath given him sheep and beeves, and silver and gold, & men-servants and maid-servants, and camels and asses.

V. The Apostles do not disallow of such servants, but command them being servants, & called to the profession of Christianity in that state, not to change, but to abide in their calling. 1. Cor. 7. 21. *Art thou called being a servant? Care not for it.*

It is alleged that such servitude is against the law of nature. *Ans.* It is indeed against the law of entire nature, as it was before the fall, but against the law of corrupted nature since the fall, it is not.

But Christ hath purchased liberty to believers, Coloss. 5. 11. *Ans.* Only a spiritual liberty in this life; & a corporal only in the life to come. For though the servant in regard of faith & the inner man be equal to his master, because in Christ Jesus there is neither master nor servant, bond nor free; yet in regard of the outward man & civil order amongst men, the master is above the servant, and the servant is, & must be subject to the master.⁷² Nevertheless where this kind of servitude is abolished, it is not to be again received or entertained amongst Christians, specially considering, it is a far more mild and moderate course to have hired servants.

If it be said again, that the Heathen Philosopher holdeth servitude to be natural, whereby some are by birth bond, and others free. I answer, That servitude proceedeth not of nature,⁷³ but hath his original from the laws of nations, and is a consequent of the fall. For all men by nature are equally & indifferently free, none more or less then others.

⁷²Theodor. Orat. 8.

⁷³Aristot. polit. lib. 1.

17. Of the Master of the Family or Goodman of the House

Thus much touching the divers and several combinations or couples belonging to the state Economical. From which do arise two persons of a mixed or compounded nature and condition, commonly called the Goodman, & the goodwife of the house.

The *good man or master of the family*, is a person, in whom resteth the private and proper government of the whole household, and he comes not unto it by election, as it falleth out in other states, but by the ordinance of God, settled even in the order of nature. The husband indeed naturally bears rule over the wife; parents over their children, masters over their servants: but that person who by the providence of God, hath the place of an husband, a father, a master in his house, the same also by the light of nature, hath the principality & sovereignty therein, and he is *Paterfamilias*, the father and chief head of the family: to him therefore the true right and power over all matters domestical, of right appertaineth. The duties of the master of the family, are specially five.

I. To bear the chief stroke, and to be the principal agent, director and furtherer of the worship of God within his family. Jos. 24. 15. *I and my household will serve the Lord*. And this he doth partly by praying for & with his household, and partly by instructing them in the holy Scriptures, and in the grounds of religion, that they may grow in knowledge and reap benefit

by the public Ministry. Thus God commanded the men of Israel to walk in their families. Deut. 6. 7. *Thou shalt rehearse them continually unto thy children, and shalt talk of them, when thou tariest in thine house,—& when thou liest down, & when thou risest up.* Again, vers. 20. *When thy son shall ask thee,—what mean these testimonies, and ordinances & laws, which the Lord our God commanded you? Then thou shalt say unto thy son, We were Pharaohs bondmen in Egypt, but the Lord brought us out of Egypt, with a mighty hand.* This testimony God gave of Abraham before the law was given, Gen. 18. 19. *For I know Abraham that he will command his sons, and his household after him, that they keep the way of the Lord.* And this household of Abraham was very large, for the holy Ghost says long before, that he had *three hundred and eighteen,*⁷⁴ *that were borne and brought up in his house,* Gen. 14. 14. It was in likelihood the course of Solomon which he had learned of his father *David*, and given for a rule to all masters of families. Prov. 4. 1. *Hear O children the instruction of a father, and give ear to learn understanding —For I was my fathers son, dear and tender in the sight of my mother, when he taught me and said unto me, Let thine heart hold fast my words.* The company of the Disciples were the household of Christ, and he himself did administer all parts of the service of God with them and among them. Luk. 22. 15. To this purpose⁷⁵ *Augustine saith, That the master of the family, doth after a sort, and in his measure perform the duty of a Churchman, or Bishop within his house.*

II. To bring his family to the Church or Congregation on the Sabbath day, to look that they do religiously there behave themselves, & after the public exercises ended, & the Congregation is dismissed, to take account of that which they have heard, that

⁷⁴[Ethchanicau] suos initiatos.

⁷⁵In Ioan. tract. 51. in fine.

they may profit in knowledge and obedience. Act. 10. 24. The day after, they entered into Caesarea; Now Cornelius waited for them, & had called together his kinsmen & special friends. *vers. 33.* Now therefore (*saith Cornelius to Peter*) are we all here present before God, to hear all things that are commanded thee of God. *Job 1. 5.* And when the days of their banqueting were gone about, Job sent and sanctified them, & rose up early in the morning, & offered burnt offerings, &c. *2. King. 4. 23.* And he said, wherefore wilt thou go to him to day? It is neither new moon nor Sabbath. *For this very cause the fourth Commandment is given first of all & principally to the master of the family, that he might see the Sabbath kept, and be a principal doer in all parts of Gods worship therein. Exod. 20. 10.* In it thou shalt not do any work, thou nor thy son, nor thy daughter, thy manservant, nor thy maid, nor thy cattle, nor thy stranger that is within thy gates.

Neither is this his care tied only to the Sabbath, but upon other days besides it, he ought to cause them of his household, as much as in him lieth, to repair to places, where the word of God is preached. Commendable was the practise of *Mary* the sister of *Martha*, in this case, who when Christ came to her house is said, *to sit at his feet and attend unto his preaching, Luk 10. 39.*

III. To provide for his family meat, drink and clothing, and that they may live a quiet & peaceable life, *1. Tim. 5. 8. Pro. 27. 26.* The lambs are for thy clothing, and the goats for the price of thy field. *v. 27.*

And let the milk of thy goats be sufficient for thy food, for the food of thy family, and for the sustenance of thy maids. *1. Cor. 9. 9.* Thou shalt not muzzle the mouth of the ox, that treadeth out the corn: doth God care for oxen? Either saith he it not altogether for our sakes? *Matth. 13. 52.* Every scribe which is taught unto

the kingdom of heaven is like unto an householder, that brings forth out of his treasury, things both new and old.

IV. To keep order, and to exercise discipline in his house, and that in this manner:

In case of offence, when a capital crime is committed, which incureth public censure; he is not to punish it himself, but to bring the offender to the civil Magistrate, to inform of his fault, that he may have his desert: It was a course established by the Judicial law, which God gave unto Moses for his direction in causes criminal among the Israelites: Deut. 21. 18. 19. 20. If any man hath a son that is stubborn, & disobedient, which will not hearken unto the voice of his father, nor the voice of his mother, and they have chastened him; then shall his father and his mother take him, and bring him out, unto the Elders of his city, and unto the gate of the place where he dwelleth, and shall say unto the Elders of his city; This our son is stubborn, and disobedient, and he will not obey our admonition: he is a rioter, and a drunkard. *Again, Deut. 13. 6.* If thy brother the son of thy mother, or thine own son, or thy daughter, or the wife that lieth in thy bosom, or thy friend which is as thine own soul, entice thee secretly saying, Let us go and serve other gods (which thou hast not known, thou, I say, nor thy fathers) thou shalt not consent unto him, nor hear, neither shall thine eye pity, nor show mercy, nor keep him secret. *Zach. 13. 3.* And when any shall yet prophesy, his father and his mother that begat him shall say unto him, Thou shalt not live: for thou speakest lies in the name of the Lord: and his father, and his mother that begat him, shall thrust him thorough when he prophesieth.

If the fault be of an inferior nature, and lesser in comparison; the master of the family ought to proceed by private censure upon the delinquent party, sometimes by admonition, otherwhiles by correction, and chastisement, according to the quality

of the offence, & the condition & state of the person. Levit. 19. 17. *Thou shalt plainly rebuke thy neighbour, and not suffer him to sin.* Mat. 18. 15. *If thy brother sin against thee, go and tell him his fault between him and thee alone: If he hear thee not, take yet with thee one or two.* Prov. 29. 17. *Correct thy son, and he will give thee rest, and will give pleasures to thy soul.*

When admonitions and corrections will not prevail, the party must be brought before the Ministers, and Governors of the Church, that they may censure him. Matth. 18. 17. *If he will not hear them, tell it unto the Church.* And the Apostle James giveth order that the Ministers of the Church should come to those that are sick, and pray for them, James 5. 14. Which if they do in case of infirmity; then they are also to be sought unto, in case of error and offence committed, for redress.

But when none of all these means will do good; if the party be a servant, his master may, and ought to remove him. Psal. 101. 7. *There shall no deceitful person dwell within mine house; he that telleth lies shall not remain in my sight.* Joh. 8. 35. *The servant abideth not in the house for ever.*

V. *To give entertainment to those that are strangers, & not of the family, if they be Christians, and Believers; but specially to the Ministers of the Word.* Rom. 12. 13. *Giving your selves to hospitality.* Hebr. 13. 2. *Be not forgetful to lodge strangers: for hereby some have received Angels into their houses unawares.* *This duty the woman of Shunem & her husband performed unto the Prophet Elisha,* 2. King. 4. 10. *Let us make him a little chamber, I pray thee, with walls, and let us set him a bed there, and a table, and a stool, and a candlestick, that he may turn in hither, when he commeth to us.* *These are the duties.*

Here if it be demanded, whether the master of a family is always, and necessarily bound in his own person to do all these things?

I answer, that if there be just and necessary cause, either in respect of his own inability, or in regard of public employment, upon a lawful calling, whereby he is hindered, so as he cannot do any of them himself, at some times; it is lawful for him to have, and use a deputy. This our Saviour Christ teacheth in effect, when he saith, *Who then is a faithful servant, and wise, whom his master hath made ruler over his household, to give them meat in season?* Mat. 24. 25. Thus *Abraham* had a steward of his house, *Eliezer of Damascus*, Gen. 15. 2. And he performed the weightiest matters, that concerned the establishment, and continuance of family, not by himself, but by his Steward, as namely the choice of a wife for his son *Isaac*, Gen. 24. 2. *Therefore Abraham said unto his eldest servant of his house, which had the rule over all that he had; Put now thine hand under my thigh, &c.* Thus *Pharaoh King of Egypt* had *Joseph*, Gen. 39. 4. *So Joseph found favour in his sight, and served him, and he made him ruler of his house, and put all that he had in his hands.*

18. Of the Mistress of the Family, or Goodwife of the House

The goodwife or mistress of the house, is a person which yieldeth help and assistance in government to the master of the family. For he is, as it were, the prince and chief ruler; she is the associate, not only in office and authority, but also in advise, and counsel unto him. 1. King. 17. 17. *And after these things, the son of the woman, which was wife, or⁷⁶ mistress of the house, was sick.*

Her duty is two-fold.

First to govern the house, as much as concerneth her, in her place. 1. Tim. 5. 14. *I will therefore that the younger women marry, and govern the house.* And that she doth three ways.

- I. By exercising her self in some profitable employments, for the good of her charge, Prov. 31. 13. *She seeketh wool, and flax, and laboureth cheerfully with her hands.*
- II. By appointing her maids their work, and overseeing them therein. Vers. 15. *She riseth whiles it is yet night, and giveth the portion to her household, and the ordinary to her maids.*
- III. By ordering her children and servants in wisdom; partly by instruction, partly by admonition, when there is need. Vers. 26. *She openeth her mouth with wisdom, and the law of grace is in her tongue.* vers. 28. *Her children rise up,*

⁷⁶[Bagnalath babbaijth.] Domina domus.

and call her blessed, &c. Tit. 2. 5. That they be discreet, chaste, keeping at home, &c. Act. 18. 26. Priscilla in her house, with Aquila, instructed Apollos, in that wherein he was wanting, expounding unto him the way of God more perfectly. Gregory Nazianzen in an Oration made for his father, saith, That his mother was not only an helper, but also a teacher or instructor, and guide unto his father in matters of religion & godliness.

The second duty is, to give the portion of food unto her family, or cause it to be given in due season. Prov. 31. 15. She riseth whiles it is yet night, and giveth the portion, or meat to her household. Thus did Rebekah in her house. Gen. 27. 9. Get thee now to the flock, & bring me thence two good kids of the goats, that I may make pleasant meat of them for thy father, such as he loveth.

Quest. Whether may the goodwife, without the consent of the goodman, give and bestow the goods belonging to the family?

Ans. I. There are some things which are proper to her self, and not part of her dowry which she brought unto her husband. And these she may claim as her own, because either they were reserved upon the match made between them, or else are peculiar unto her by their mutual consent, and of them she may lawfully give, without her husbands knowledge. II. The goods which are common to them both, are of another nature; and these she may not bestow, without his allowance, either express or at least general and implicit, specially when the giving of them doth or may grow in likelihood, to the hindrance, and prejudice of the state of the family.